

CHAPTER 1: INTRODUCTION

- ✓ Public international law is the law that applies to *international actions*, whether committed by States, international organizations, or even individuals.
- ✓ Public international law may be distinguished from private international law (otherwise known as “conflict of laws”), which concerns the situation in a nation’s *domestic* courts when another nation is involved. Thus, a concern of private international law would be whether the law of Ethiopia or Kenya is more appropriate for a private lawsuit arising out of a contract entered into by two Kenyans living in Ethiopia. Public international law involves a super-legal system that operates between States and exists separate from domestic laws.
- ✓ International laws are not written down in one book like the Civil Code of Ethiopia. There is no international government that has authority to pass such laws. Rather, international laws are the byproduct of actions – the actions of States and other international actors like the United Nations.
- ✓ If the majority of powerful States in the world decided to cancel all their international commitments, then international law would cease to exist and the rules in this text would be meaningless.
- ✓ International laws depend almost entirely on the States that create these laws.
- ✓ The rules are built on shifting ground; they change form as the ground underneath them moves, as nations push up against one another and attempt to negotiate for a better position.

CHAPTER 2: THE STATE SYSTEM

- ✓ **The basic unit of the international legal system is the State.** State is a legal “person” that has a status in international law similar to the status of a real person in national law. The **State has a will or “personality”** by which it expresses itself; it is equal with other States before the law; and it is seen as an indivisible whole.
- ✓ **The difference between the State and that State’s government:** The State is an **idea** that has a great deal of meaning to its citizens and incredible endurance over the long term despite whatever internal divisions and tensions it may suffer. **The stability of the State System rests on the stability of States,** and for this reason international law places a great deal of emphasis on a State’s continued legal existence and relative permanence of its borders. **The government of a State may change, through normal constitutional processes or otherwise, and the State itself will continue to exist.** Even a total change in the structure of government – for example, by rewriting the constitution – will not change a State’s legal obligations to other States at the international level.
- ✓ **The deference between national legal system and international legal system:**
 - ✱ **National legal system**
 - ★ individual people have the right and duties under the law,

- ★ The government makes the laws (typically the legislature).
- ★ The judiciary decides on the rights and duties of individual people.
- ★ The government enforces the law (typically the executive branch).
- ★ Individuals have formal equality before the law. Thus, the law applies the same to the weak and the powerful, the poor and the rich

✧ International legal system

- ★ States have rights and duties under the law.
- ★ There is no international government or legislature that makes laws applicable to all States. Rather, States have to consent to the laws individually, either by entering into treaties with other States or by creating customs through their behavior.
- ★ Although there are many international tribunals, for example the International Court of Justice, none of them has compulsory jurisdiction to decide on the rights and duties of States. Rather, States must first consent to the jurisdiction of an international court before the court can make a decision about those States' rights and duties.
- ★ Again, there is no international government with the authority to command States. This has led some scholars to argue that there are no real enforcement mechanisms at the international level. Individual States, acting alone or through the United Nations or some

regional organization like NATO, must enforce their own rights. This results in uneven enforcement of international laws. Is this a problem? Is enforcement a matter of politics, that is, at the discretion of powerful States?

★ States also have formal equality before the law in the international system. When States go before the International Court of Justice, for example, there are no special privileges accorded to more powerful States. Still, because enforcement is only possible with the backing of a powerful State, the law in practice may be applied unequally.

- ✓ The State system came into being with the birth of the so-called “nation-state” in Europe in the 16th and 17th centuries.
- ✓ Modern international law is based almost entirely on the State system and is derived in the first instance from the principle of State sovereignty that establishes the State as the relevant unit that is to be ordered by international laws.
- ✓ The first international law is the law that established the State as the subject of international law.
- ✓ It is positivists who raise the point that international law should not be called “law.” The argument is that law, by definition, requires some centralized enforcing power. At the national level, the government (particularly the executive) enforces the laws. In international relations there is no

centralized enforcing power. Rather, there is a loose amalgamation of individual sovereign States who may or may not follow their own rules.

- ✓ Nonetheless, this theoretical prediction is not borne out in practice to the extent that positivist scholars might predict. It has been noted that most States obey most international laws most of the time.
- ✓ **The traditional State system** has suffered more recent changes from globalization and improved technologies that force more expansive areas of international cooperation. In the traditional State system, international laws at the international level applied only to States. That is, only States had international “legal personality” – the ability to sue and be sued in international tribunals. Only a State could commit international wrongs, and only a State had international rights which, when violated, could form the basis for an international claim.
- ✓ **The modern international system** is still a “State System,” composed of States, but many new actors now play a role in international relations. Principal among these new actors are international organizations like the United Nations and the World Trade Organization. International organizations thus have gained international “legal personality”; they can sue and be sued in international tribunals.

✓ In some international tribunals even individuals may assert rights against States. A set of human rights laws has emerged that imposes obligations on States in respect of their citizens. Through the work of international human rights tribunals, these laws increasingly intrude beyond a State's borders to redeem the rights of individual citizen-victims.

✿ **Hugo Grotius:** There is no state so powerful that it may not some time need the help of others outside itself, either for purposes of trade, or even to ward off the forces of many foreign nations united against it. In consequence we see that even the most powerful peoples and sovereigns seek alliances...

✿ **Virginia Black, *A Normative Critique of State Personality*, 1983:** Hugo Grotius held to a doctrine sometimes called "parallelism." Since individual persons can be virtuous and just, reasonable, dutiful and sociable, keep contracts and obey laws, then corporate organizations like the state can also be virtuous, reasonable and just, can be sociable, obey laws, conform to the same duties as individuals, etc. It seems that Grotius thought such analogous predication an exemplary condition for international peace. As civil law regards and regulates the rights and interests of persons, so should international law regard and regulate the rights and interests of nations.

✿ **Hans Kelsen, *The Pure Theory of Law*, 1967:** ...The state is a relatively centralized legal order.

This centralization distinguishes the state as a legal order from the primitive pre-state order and the super-state order of general international law. In neither order are the general legal norms created by a central legislative organ but by way of custom, which means that the creation of general legal norms is decentralized. Neither the pre-state nor the super-state legal order establishes courts authorized to apply the general norms to concrete cases, but authorizes the individuals subjected to the legal order themselves to render this function and, particularly, to execute, by way of self-help, the sanctions prescribed by the legal order. According to primitive law, it is the members of the murdered man's family who take blood revenge against the murderer and his family, which means, they are authorized to carry out the primitive punishment; it is the creditor himself who can satisfy this claim against the debtor by taking some property of the debtor and holding it in pawn. It is the government of the individual state which, according to general international law, is authorized to resort to war or take reprisals against a law-violating state, which means: against the subjects of the state whose government has violated the law. True, the individuals who in the pre-state and in the super-state community create (by custom) or apply the law and execute the sanctions, are legal organs and thus organs of the legal community; but they are not functioning in the manner of division of labor and therefore not centralized organs like a government, a legislature, and courts under a national legal

order. The legal order of primitive society and the general inter-national law order are entirely decentralized coercive orders and therefore not states.

❁ **John R. Bolton, *Is There Really 'Law' in International Affairs?* 2000:** Treaties are often analogized to contracts, agreements between people, businesses, or other kinds of associations. This analogy is fundamentally wrong... [With contracts], the promises take place within a system, where if one party breaches its promise, there is a defined way to get remedies. There is a process to decide which promises are legitimate and a procedure to enforce a court order that a party has breached a promise. The very concept of a contract, in other words, takes place within a coherent universe. A treaty is an exchange of promises – period. A treaty is primarily a compact between independent nations. It depends for the enforcement of its provisions on the interest and the honor of the governments which are party to it. If these fail, its infraction becomes the subject of international negotiations and reclamations, so far as the injured party chooses to seek redress, which may in the end be enforced by actual war... International law is not law; it is a series of political and moral arrangements that stand or fall on their own merits, and anything else is simply theology and superstition masquerading as law.

❁ **Jonathan Baert Wiener, *Global Environmental Regulation*, 1999:** ...National legislation, at least in democracies, employs a version of Majority rule... By contrast, the voting rule for international

treaty law is Voluntary Assent: Treaties bind only those who consent to be bound... The fundamental differences between [domestic voting rules] on the one hand, and [international voting rules] on the other, is thus the ability to coerce dissenters. Under [domestic majoritarian processes]... losing dissenters never have the option to refuse to be bound by the law. Under a Voluntary Assent paradigm, dissenters cannot be coerced; rules are binding only on those who agree to be bound...

As the number of participants who must be consulted increases, the cost of multiple negotiations and the chance that a nation will act as a holdout, insisting on satisfaction of its interests as the price for its assent, rise as well. Even if all countries would reap net benefits from the treaty, uncertainty about others' likely cooperation may induce strategic noncooperation (free riding). Each party's perception of its own gain in turn depends partially on its perception of whether other parties are likely to keep their end of the deal; cooperation is thus endogenous, delicate, and potentially difficult to arrange. Even after becoming parties to the treaty, nation-states can withdraw or decide not to comply. Although such withdrawal or noncompliance might be made illegal under the terms of a treaty, the practical question is whether any enforceable sanctions could be brought to bear against the defector.

The threat of withdrawal or noncompliance gives the nation a continuing ability to exact concessions from other parties to the treaty.

The costs to the entire group of negotiating a consensus treaty can be high in terms of the time and effort needed to craft a successful consensus, the side payments extracted by dissenters, and the collective gains forgone when individual countries delay or block action on parochial strategic grounds...

State Sovereignty

- ✓ A State's sovereignty is its independence.
- ✓ The word "sovereign" implies some ultimate authority, a master with no master above him, a free and autonomous entity.
- ✓ The concept of **State sovereignty has two core elements**. First, the **State has exclusive control over its territory and its internal affairs**. Other States cannot go into Ethiopian territory without Ethiopia's permission. Second, **States are autonomous entities and, in principle, cannot be bound to an obligation without their consent**. Treaties are not imposed on Ethiopia but rather entered into upon Ethiopia's free consent.

- ✓ The concept of State sovereignty has many implications for interstate relations. **The first implication is that the State must speak with one voice at the international level.** This is important because, in reality, a State has many voices, dissenting political parties, and even groups within its territory that oppose the central government. Other States, out of respect for State sovereignty, are not supposed to engage in dealings with these sub-state groups at all. Another point is that **other States should not concern themselves with certain internal matters of a sovereign State like the type of government a State adopts – whether monarchical, tyrannical, democratic, socialist, or otherwise – or the State's religion or the way a State treats its citizens.**
- ✓ The principle of State sovereignty is based on international customary law but it is often confirmed in international treaties. For example, the UN Charter states in Article 2, Section 7: “Nothing contained in the present Charter shall authorize the United Nations to intervene in matters which are essentially within the domestic jurisdiction of any state...”. Another expression of State sovereignty is found in the *Declaration on Principles of International Law Concerning Friendly Relations and Co-operation among States* (a UN General Assembly resolution adopted in 1970, not a treaty): No state or group of states has the right to intervene, directly or indirectly, for any reason whatever, in the internal or external affairs of any other state. Consequently, armed intervention and all other fo

- ✓ acts of interference or attempted threats against the personality of the state or against its political, economic and cultural elements are in violation of international law.
- ✓ State sovereignty and the modern nation-state really came into being in 1648 with the Treaty of Westphalia that ended the 30 Years War in Europe. The War arose in part out of tensions between Catholics and Protestants and fears of civil strife between these two religious groups.
- ✓ The Treaty of Westphalia resolved religious tensions by giving each State the power to determine religious affairs within its own territory. The idea was to block interstate alliances based on religious affiliation.
- ✓ The second aspect of sovereignty is relating to the freedom of States in their relations with other States. If States are truly independent of one another, then their relations must be based on their free consent. A treaty is binding on a State only so long as that State agrees to be bound by it. International customs apply only so long as States continue to act in the customary way.
- ✓ The concern with State consent to international obligations came in the 19th century with the emergence of the **theory of legal positivism**. According to this theory, “law” properly defined includes only the law posited by a sovereign and obeyed by subjects. The international system is not a system of *law* at all because there is no international body to enforce obligations, hence no fear of punishment on the part of States, hence no obedience by States. A sovereign State is a free State,

and a free State does not abide by the will of other States. Such arguments contribute to the idea that States are free even to the extent that their consent will bind them only temporarily, until they consent to something else.

Erosion of State Sovereignty

- ✓ State sovereignty is an international custom, established through the behavior of States, but it is a custom so fundamental that it is not necessary to prove it when arguing before an international court. In a sense, State sovereignty is a constituting principle in international law, somewhat analogous to a constitutional provision in a particular State.
- ✓ Many people have argued that States are no longer free and sovereign; that sovereignty has been eroded by international laws and international bodies; that such laws and such bodies tend to restrain the activities of States from the outside. This argument has been made numerous times in the Congress of the United States, for example, and has led certain U.S. politicians to hold back support from international organizations like the United Nations and the International Criminal Court for fear that the U.S. is giving up its sovereignty.

Theories of State Behavior

- ✓ International lawyers tend to see in the international relations among States a web of legal obligations that guide States' behavior. That is, lawyers argue that States will perform treaties and continue to follow international customs out of a sense of legal obligation on the part of the officials in those States' governments. Certainly it is true that most international laws are obeyed most of the time.
- ✓ International law is not about memorizing a set of laws that will be applied uniformly to each and every State and situation. The "laws" are more flexible, more subject to power relations, and therefore more elusive and harder to grasp.
- ✓ International laws must incorporate previously established claims that are defended by strongly interested States, whether fair or not and, sadly, the ideal, objective law must give way, in some cases, to the present interests of more powerful States. These are the necessary sacrifices for consensus among States.
- ✓ Many theorists argue that lawful behavior by States is merely a coincidence that arises out of a mixture of other motives on the part of States. The State is an aggregate of State officials, and it does not obey the law because it has to obey the law but rather because it is in its self-interest to do so at any given moment. Such theorists are quick to point out that international laws are not enforced consistently. There is no central body in international relations with the ability to enforce

international obligations – especially not against powerful States. International laws that cannot be enforced are not “laws” at all but rather more like suggestions. If this is true, then it is unlikely that the fear of punishment prevents States from breaking international obligations, and again unlikely that a concern with legality really motivates State officials to follow international norms.

- ✓ Officials tend to prefer predictability in State relations that only a legal system can provide. International violations by these officials tend to be strategic and only on particular points rather than systemic and against all of international law. In a cost-benefit analysis, it is apparent that breaking rules to the point of undermining them has too great a cost. It is better to break rules occasionally and attempt to hide this action than it is to break the rules openly and flaunt it.
- ✓ The main problem with any theory of State behavior is that it is difficult to define what the controlling interests of the State are.
- ✓ Contemporary theories of State behavior can be divided broadly into (1) interest-based theories including realism, institutionalism, and liberal theory; and (2) norm-based theories including constructivism and legal process theories.
- ✓ While modern theories seek to turn the State into a creature of predictable and mathematical movements, the Greek men in Thucydides’ *History* seem to assume that the State may be swayed at

any given moment by the advice of its councilors. Is the State's behavior pre-determined, or may it be changed by advice from theorists and law scholars? This is a question of free will.

State Formation and the Self-Determination of Peoples

⚙️ Legal and Political Issues of Statehood

- ✓ States come into existence in many different ways. A former colony may gain its independence; a part of a State may split off to form a new State; an old State may die and dissolve into several new States; or two States may merge to form a single new State. In these situations, the international community must decide the question, When does an emerging entity become a legal State with all the rights and duties of a State under international law?
- ✓ Unfortunately, this is not the case. International bodies may be influential in directing the opinion of the international community, as we will see in a moment, but ultimately the decision of how to treat an emerging entity – or indeed a long-existing entity – is left to the discretion of each existing State.
- ✓ There are, of course, legal criteria that tell us when an emerging entity has become a legal State. Some scholars have argued that, for example, Ethiopia has a duty under international law to

recognize an emerging entity as a State once that entity has met the legal criteria for statehood. This does not change the fact that each State has a great deal of discretion in regard to its foreign relations and there is little opportunity for the international community to force a State like Ethiopia to recognize an emerging entity as a legal State. More than just recognition, existing States will decide on an individual basis whether or not to confer the *benefits* of Statehood on an emerging entity, for example whether or not to enter into treaties with the emerging entity, whether or not to accept embassies, and whether to entertain diplomatic representatives from the emerging entity in international forums.

✓ The 1933 Convention on the Rights and Duties of States (known as the Montevideo Convention), sets out four simple criteria for statehood. “The state as a person of international law should possess the following qualifications:

- a permanent population;
- b) a defined territory;
- c) government;
- d) Capacity to enter into relations with the other states.” Seemingly, if an entity has these four things, it is a legal State.

- ✓ As with other aspects of international law, the criteria of Statehood differ in theory and in practice. In practice, even after new States have met the four legal criteria of Statehood, they are not automatically recognized as States by other States. This is not to say that there are additional legal criteria for Statehood but rather to point out that there is a strong political dimension to this issue. After all, State formation usually involves taking away territory that previously belonged to another State and for this reason is politically very sensitive.
- ✓ There has been some debate in the scholarship about the role that recognition of States plays in deciding whether an emerging entity is a State. As mentioned before, the benefits of Statehood only come with recognition by other States. In theory, however, the weight of legal authority rests with the so-called “declaratory” view that a State exists once it has met the four legal criteria, whether or not it has been recognized by any other State. According to the Institute de Droit International: “The existence of a new State with all the legal consequences attaching to this existence is not affected by the refusal of recognition by one or more states.” (1936). The other view is the “constitutive” view, holding that other States “constitute” or create a new State by recognizing it. Although this theory gives proper deference to international politics, it does not provide a clear point at which a State becomes a State and in fact may misrepresent the way that States make recognition decisions.

- ✓ Similar problems arise when determining whether a State is no longer a legal State. In other words, it is just as difficult to say when a State has died as to say when a State has been born. Logically, it would make sense to apply the four criteria again and say that, when an existing State can no longer satisfy all four criteria, it ceases to exist. In practice, this is not done. International law places a great deal of emphasis on stability in international relations and thus resists any sudden withdrawal of Statehood status. In short, a State may lose its government for a time and still remain a State. A State may lose control over its relations with other States and likewise remain a State, etc. For example, the collapse of the central government in Somalia during most of the 1990s did not change Somalia's status as a State in international law. Neither did Iraq's occupation of Kuwait for nine months alter Kuwait's status as a State.
- ✓ Questions of Statehood are particularly tricky when dealing with a rebel group that is trying to secede from an existing State. The State that is losing territory (predecessor) almost always will oppose the creation of the new State, and recognition of the new State by other States will be perceived as an aggressive move or as interference with the internal affairs (sovereignty) of the Predecessor State. In fact, early recognition of a rebel group by another State is illegal – a violation of the predecessor State's sovereignty. It would seem that the international community must wait until most of the fighting between the rebels and the central government has stopped. As mentioned

before, the four legal criteria will be applied more strictly, especially the criterion of an effective government. The rebels will have to show to the international community that they, rather than the central government of the predecessor State, have effective control over their territory. A rebel group usually begins its campaign for a new State with a “unilateral declaration of independence.” Such a declaration of itself does not achieve a new State, but, without such a declaration, an otherwise independent entity might not obtain Statehood.

- ✓ According to the **declaratory theory**, statehood or the authority of a new government exists as such prior to, and independently of, recognition... The act of recognition is thus a formal acknowledgment of an established situation... If an entity does not fulfill all the factual conditions of statehood as required by international law, a declaration of recognition by a state is invalid, and any consequential participation by the new entity in international relations cannot be on the footing of international law. A clear example of an illegal and thus invalid recognition is where the act of recognition is premature and thus an unwarranted interference in the affairs of another state.
- ✓ According to the **constitutive theory**, it is the act of recognition alone which creates statehood. This theory has some inherent difficulties. First, it is capable of creating an international monster in that “the status of a state recognized by state A, but not recognized by state B, and therefore apparently both ‘an international person’ and ‘not an international person’ at the same time would

be a legal curiosity.” The second difficulty is more substantial. How many recognitions will be sufficient to constitute an entity a state in international law?

- ✓ Increasingly, States and international organizations like the European Union and the United Nations are making express demands that must be met by new States before these States will be recognized. It is not that existing States are adding to the four criteria for Statehood. Rather, existing States are offering recognition in exchange for promises by the new States to support human rights, prevent nuclear arms proliferation, etc. Recognition is being used as political leverage to further certain policy goals at the international level.

⚙ The Right of Self-Determination

- ✓ No principle has been as important to the formation of new States as the so-called “right of peoples to self-determination.” This principle was articulated first as a right of colonized people to self-government, but it has since been used to justify the creation of States in other ways, as by secession.
- ✓ U.S. President Wilson was one of the first to advocate the right of self-determination, following World War I. (Notably, the idea of the right of self-determination goes back at least to the time of the American and French Revolutions, and Lenin also expressed this idea in his revolutionary theses published in 1916. Wilson’s idea, however, as it was later incorporated into the UN Charter, is the

beginning of the history of the modern international law right of self-determination.) Wilson envisioned “a post-war order informed by the notion that ethnically identifiable peoples or nations would govern themselves.” Of course, in 1920 the right of self-determination was not yet international law.

- ✓ Whatever Wilson’s intentions, European powers continued to have colonies after World War I and carefully ignored any right of these colonized peoples to self-determination.
- ✓ The League of Nations, begun after World War I, included the “Mandates System” for the administration of the colonies of the losing European powers (Germany, Austria-Hungry, and the Ottoman Empire). Certain States were given “Mandates” to govern these colonies (for example, South Africa had a Mandate to govern Namibia, a former German colony). **The Mandates System did not provide for independence of the colonies, but it did require the** new rulers (Mandatory Powers) to treat inhabitants better, for example duties “to endeavour to secure and maintain fair and humane conditions of labour.” The League was responsible for oversight.
- ✓ The right of self-determination, even at this time, was not exclusively a matter of decolonization. Sadly, in the time leading up to World War II, Hitler invoked the right of self-determination to unite German speaking peoples from other nations in Europe into one Reich.

- ✓ The right of self-determination was affirmed as an international law when it was written into the Charter of the United Nations in 1945. The right was included in Article 1 as one of the major purposes of the United Nations: “To develop friendly relations among nations based on the respect for the principle of equal rights and self-determination of peoples...” Notably, many of the victorious Allied Powers like France, Britain, and the Netherlands still had their colonies. For this reason perhaps the Charter did not call specifically for decolonization, nor did it explain exactly what was meant by the self-determination of peoples. Seemingly, the right of self-determination was not to redraw political boundaries according to “ethnically identifiable peoples,” as Wilson would have had it, but rather to provide a basis for claims for better treatment against an existing government.
- ✓ Nowhere does the Charter specifically call for freedom for colonized territories. Apart from the undefined “right of self-determination,” the UN Charter in Article 73 laid out some specific duties of colonizing countries, “to promote to the utmost... the well-being of the inhabitants of these [colonial] territories, and, to this end... to develop self-government, to take due account of the political aspirations of the peoples, and to assist them in the progressive development of their free political institutions...” These are ideal goals for political freedom, not specific requirements that can be measured. The Charter continued the policies of the League of Nations in stronger form,

placing even greater responsibilities on the colonizers as part of their “sacred trust” to promote the well-being of colonized people. The Charter set up a “Trusteeship System,” similar to the Mandates System under the League, to administer colonies of the losing powers. (Decolonization nonetheless took place after World War II and was more-or-less completed by the mid 1970s.)

- ✓ From the beginning, then, the right of self-determination is not clearly explained or defined. Is this merely a right to a good (and maybe democratic) government? Or is this a right to have a State of one’s own? If so, who are the “peoples” who have this right to their own State? May “peoples” use violent means to form their new State (i.e. secession)? What about State sovereignty and the State’s right to control its own territory?
- ✓ The biggest problem with the right of self-determination is written into the UN Charter. That is, the UN Charter both guarantees the right of peoples to self-determination and the right of States to territorial integrity. If self-determination is to mean anything as a political right – with some real method of enforcement – then it will pose a threat to a State’s territorial integrity.
- ✓ The history of self-determination bears this point out. The right of self-determination became the justification for decolonization, and forceful decolonization inherently goes against a State’s right to territorial integrity. The guarantee of territorial integrity seemingly would include *all* of a State’s territory, colony or otherwise.

- ✓ Most of the international instruments that include the right of self-determination gloss over its various contradictions and leave its definition vague. The International Covenant on Civil and Political Rights (ICCPR) and the International Covenant on Economic, Social, and Cultural Rights (ICESCR), two of the most important international treaties on human rights, contain identical statements affirming the right of peoples to self-determination. The Covenants begin in Article 1 with “All peoples have the right of self-determination. By virtue of that right they freely determine their political status and freely pursue their economic, social and cultural development.” As with the UN Charter, the Covenants do not go on to explain what is meant by the right of self-determination or who the “peoples” are.
- ✓ The ICCPR contains a separate article dealing with minority rights. Article 27 explains that “persons belonging to... minorities shall not be denied the right... to enjoy their own culture, to profess their own religion, or to use their own language.” Some scholars have argued that Article 27 should be interpreted as the exclusive article on minority rights, meaning that minorities *only* have the right to culture, religion, and language, and not, as under one interpretation of the right of self-determination, the right to their own State. If “peoples” was meant to include “minorities” why did not the ICCPR specify “peoples and minority groups” in Article 1? At the same time, why limit the rights in Article 27 to the right to culture, religion, and language? Why not include self-

determination in Art 27? These scholars argue that “peoples” means the entire populace of a State. If the entire populace together has the right of self-determination, then this can only mean the democratic right to have some say in government, not the right to secede or form separate States.

- ✓ The right of self-determination is contained also in the African Charter on Human and People’s Rights. According to the African Charter, “[all peoples] shall have the unquestionable and inalienable right to self-determination...” Again, the right is not clearly defined.
- ✓ The UN General Assembly has passed several resolutions concerning the right of self-determination. (In fact, the General Assembly currently – 2007 – is considering the adoption of the Declaration on the Rights of Indigenous Peoples which would define “peoples” and explain in detail what the right of self-determination means.) General Assembly resolutions are not of themselves binding as international laws. They are, nonetheless, definitive expressions of the opinions of the international community and can become binding through time if complemented by the subsequent practice of States.
- ✓ Two very important General Assembly resolutions make reference to the right of peoples to self-determination. The first, passed in 1960, is the *Declaration on the Granting of Independence to Colonial Countries and Peoples*. The resolution repeats the language of the ICCPR and ICESCR in paragraph 2: “All peoples have the right to self-determination; by virtue of that right they freely

determine their political status and freely pursue their economic, social and cultural development.”

More importantly, the resolution in paragraph 6 seems to resolve the conflict between self-determination and territorial integrity in favor of territorial integrity: “Any attempt aimed at the

partial or total disruption of the national unity and the territorial integrity of a country is incompatible with the purposes and principles of the Charter of the United Nations...” The second

resolution, passed in 1970, is the *Declaration on Principles of International Law Concerning*

Friendly Relations and Co-operation Among States in Accordance with the Charter of the United

Nations. This resolution seems to reinstate the tension between self-determination and territorial

integrity. It first explains that, “The establishment of a sovereign and independent State, the free association or integration with an independent State or the emergence into any other political status

freely determined by a people constitute modes of implementing the right of self-determination by that people.” Thus, the right to establish a new State (which implies the right to secede at least in

certain situations) is expressly confirmed. The resolution goes on to restate the right to territorial integrity, with an added twist: “Nothing in the foregoing paragraphs shall be construed as

authorizing or encouraging any action which would dismember or impair, totally or in part, the

territorial integrity or political unity of sovereign and independent States *conducting themselves in*

compliance with the principle of equal rights and self-determination...”

- ✓ Unlike the international instruments, Ethiopia's Constitution is quite clear about what the right of self-determination means, who the "people" are who can claim this right, and how this right can be lawfully exercised. The Constitution states in Article 39 that, "Every Nation, Nationality and People in Ethiopia has an unconditional right to self-determination, including the right to secession." So, at the beginning we know that self-determination includes the right to secession. The Constitution goes on in the same Article to define "Nations, Nationalities, and peoples" as "a group of people who have or share a large measure of a common culture or similar customs, mutual intelligibility of language, belief in a common or related identities, a common psychological make-up, and who inhabit an identifiable, predominantly contiguous territory." Finally, constitutional procedures are established by which a people may secede. First, a demand for secession must be made by the people and approved by two-thirds of the legislature of the people. Then the federal government will organize a referendum on secession which must be approved by a majority vote.
- ✓ The recognized sources of international law establish that the right to self-determination of a people is normally fulfilled through *internal* self-determination – a people's pursuit of its political, economic, social and cultural development within the framework of an existing state. A right to *external* self-determination (which in this case potentially takes the form of the assertion of a right to unilateral secession) arises in only the most extreme of cases and, even then, under

carefully defined circumstances. *External* self-determination can be defined as in the following statement from the *Declaration on Friendly Relations* as: [t]he establishment of a sovereign and independent State, the free association or integration with an independent State or the emergence into any other political status freely determined by a *people* constitute modes of implementing the right of self-determination by *that people*.

- ✓ The international law principle of self-determination has evolved within a framework of respect for the territorial integrity of existing states. The various international documents that support the existence of a people's right to self-determination also contain parallel statements supportive of the conclusion that the exercise of such a right must be sufficiently limited to prevent threats to an existing state's territorial integrity or the stability of relations between sovereign states.
- ✓ The *Declaration on Friendly Relations*, the *Vienna Declaration* and the *Declaration on the Occasion of the Fiftieth Anniversary of the United Nations* are specific. They state, immediately after affirming a people's right to determine political, economic, social and cultural issues, that such rights are *not* to be construed as authorizing or encouraging any action that would dismember or *impair, totally or in part, the territorial integrity or political unity of sovereign and independent States conducting themselves in compliance with the principle of equal rights*

and self-determination of peoples and thus possessed of a Government representing the whole people belonging to the territory without distinction. . . .

- ✓ While the *International Covenant on Economic, Social and Cultural Rights* and the *International Covenant on Civil and Political Rights* do not specifically refer to the protection of territorial integrity, they both define the ambit of the right to self-determination in terms that are normally attainable within the framework of an existing state. There is no necessary incompatibility between the maintenance of the territorial integrity of existing states and the right of a "people" to achieve a full measure of self-determination. A state whose government represents the whole of the people or peoples resident within its territory, on a basis of equality and without discrimination, and respects the principles of self-determination in its own internal arrangements, is entitled to the protection under international law of its territorial integrity.
- ✓ Accordingly, the general state of international law with respect to the right to self-determination is that the right operates within the overriding protection granted to the territorial integrity of "parent" states.
- ✓ The right of colonial peoples to exercise their right to self-determination by breaking away from the "imperial" power is now undisputed, but is irrelevant to this Reference.

- ✓ The other clear case where a right to external self-determination accrues is where a people is subject to alien subjugation, domination or exploitation outside a colonial context...

⚙️ State Territory and Borders

- ✓ The formation of a new State inevitably brings with it the question of where the new State's boundaries will be. This problem is well known to Ethiopia, which has an ongoing dispute with Eritrea (formed in 1993) over their shared border. Such disputes in Africa have been decided by the principle of *uti possidetis, ita possidetis* (or just *uti possidetis* for short), a Latin phrase which means literally, “[you may] keep what you had.”
- ✓ By this is meant that former colonies, on gaining independence, will keep the borders established previously by the colonizing power. The principle applies both to administrative boundaries in territories controlled by one sovereign and boundaries established by treaty between two sovereigns.
- ✓ The borders of the new States will be determined by looking at maps showing the administrative divisions of the colony or by treaties entered into with the previous colonial power.
- ✓ The real alternative to *uti possidetis* would have been to allow each particular ethnic group and “people” to form a new State at the time of decolonization based on the right of self-determination.

- ✓ There are several different aspects to this principle [of *uti possidetis*]... The first aspect...is found in the pre-eminence accorded to legal title over effective possession as a basis of sovereignty... The essence of the principle lies in its primary aim of securing respect for the territorial boundaries at the moment when independence is achieved. Such territorial boundaries might be no more than delimitations between different administrative divisions or colonies all subject to the same sovereign...

✿ State Succession

- ✓ There are additional legal issues involved when the political map changes and control over territory shifts from one State to another. Even if the international community unanimously recognizes a new State, there remain certain “succession” issues, or in other words issues over how property and rights will be transferred from the predecessor State to successor States.
- ✓ “*Succession of States*” means the replacement of one State by another in the responsibility for the international relations of territory; a “*predecessor*” State is the parent State from which the new State is formed or territory transferred; and a “*successor*” State is the new State, the “child” of the predecessor (or the State that inherits territory).

- ✓ The first point to be made is that a succession of States should not be confused with a succession of governments. For new governments, there is a simple rule. The new government will inherit *all* the rights and obligations of its predecessor government.
- ✓ International law in relation to succession of States is *not* clear. In theory, there are two extreme positions, and in practice there is everything in-between.
 - ★ “**Clean slate**” position, which holds that the successor State should assume *none* of the rights and obligations of the predecessor State. The successor State starts its life with a “clean slate,” or in other words with none of the baggage from the predecessor State.
 - ★ The “**continuity**” position, which holds that the successor State should assume *all* the rights and obligations of the predecessor State. Most of the time our answer to succession issues will fall somewhere between these two extreme positions.
- ✓ In dealing with succession issues we should first look for an agreement among the affected parties (the states). If for e.g. the successor States of the Soviet Union get together and enter into an agreement that clearly distributes the property of the Soviet Union among all of them, then we can rely on the terms of this agreement for the purposes of determining State property for each successor State. If on the other hand there is no agreement among the successor States, or the

agreement is incomplete, then we should apply the default rules, just as in contract cases a Court will fill in where the parties failed to specify terms.

- ✓ Two successor States cannot get together and distribute property and debt between them in such a way that harms the interests of another successor State. Along the same lines, all successor States cannot get together and alter treaty obligations in such a way that harms the interests of other State parties to the treaty. Obviously, all successor States cannot get together and agree to cancel all debts of the predecessor. This would harm third parties – the creditors that loaned the money.
- ✓ Predecessor States may negotiate among themselves and with successors to determine the rights and duties of successors. Such an agreement is called a devolution agreement. Also, in dissolution situations in which the predecessor ceases to exist, all successors may get together and form an agreement. In cases of treaties successor States may negotiate with other parties to the treaty on a case-by-case basis.
- ✓ In the absence of agreement, we must look to the default rules for State succession. In truth, there are few default rules in State succession that have attained the status of international law. Two important treaties on succession have been created, but few States have joined these treaties. The first, the Vienna Convention on Succession of States in Respect of Treaties, was completed in 1978. It has some seventeen members (including Ethiopia) and has entered into force for these

members. **The second, the Vienna Convention on Succession of States in Respect of State Property, Archives, and Debts, was completed in 1983.** It is not yet in force for lack of State signatories.

✱ **The default rules for State succession in respect of treaties.** The rules vary depending on the type of situation. Nonetheless, certain general principles apply. First the treaties in question are between a State involved in State succession (a predecessor State) and other State parties that are “innocent,” i.e. not involved in this succession. The rules are intended to avoid prejudicing the rights of these innocent parties to the treaty. Second, and along the same lines, **the rules will not be applied if applying them would somehow go against the underlying object and purpose of the treaty.**

★ **If the State is newly independent from foreign domination** (for example a former colony that gains independence), the State generally begins its life with a “clean-slate.” That is, the new State inherits none of the treaty obligations of its predecessor. Of course, **the principle of *uti possidetis* still applies, so the new State will be bound by colonial treaties establishing borders.**

★ **If the new State is a product of dissolution** (for example, successor States to the former Yugoslavia), default rules for succession in respect of treaties will be more complex. According to the Vienna Convention, *most* treaties will pass to the successor States. **Any**

treaty that deals with the *entire territory* of the predecessor State will apply to all of the successor States. On the other hand, if the treaty concerns the territory of only one or two successor States, then only those successor States will be bound by this treaty.

- ★ If the situation is not complete dissolution but rather **partial dissolution** (only part of the predecessor State breaks off to form a new State, just as Eritrea broke off from Ethiopia), then very similar rules apply as in a complete dissolution situation. According to the Vienna Convention, all treaties will continue to apply to the Predecessor State unless it can be shown that “the treaty related only to the territory which has separated from the Predecessor State.”
- ★ When two or more States merge to form one State the Vienna Convention says, apply *all* treaties of the two predecessor States to the Successor State, but only in the territory that was controlled by the particular predecessor that entered into that treaty.
- ★ When territory is transferred from one State to another, the Vienna Convention’s default rule is to cancel old treaty obligations for the territory in question and apply the treaties of the acquiring State.

✧ The default rules for property and debt

- ✓ According to the Vienna Convention, *immovable property* will go to the successor State in which the property is found.

- ✓ A second category of property is *moveable property*, but “connected with the activity of the **Predecessor State** in respect of the territory to which the succession of States relates.” **Any property that we can connect to territory, including currency and state public funds located in the territory of the successor**, probably will stay in the territory where the moveable property is found.
- ✓ Finally, *moveable property not connected to territory* (for example, any property outside the territory or intangibles like bank accounts) will be distributed in some equitable fashion. If the Predecessor State continues to exist after succession, then it will take all moveable property. (The justification is that this was the State that originally earned the money.) **If the Predecessor State ceases to exist, moveable property is distributed equitably** (for example, in proportion with the distribution of debt and considering such factors as the population of the successor, national income, etc.).
- ✓ For debt, more than for treaties or property, the parties are likely to come to an agreement and the default rules will not matter. That said, there are default rules, and they stand in the background of negotiations. Naturally, successor States would prefer not to pay any debt at all. Creditor States and organizations generally rely on two means of coercion. **First, there is the threat that if the successor State does not take up its portion of debt, it will not get any future loans from the**

international community. Second, there is reliance on the fall-back default rules that generally preserve the creditors' rights.

- ✓ The general rule from the Vienna Convention is that “the State debt of the Predecessor State shall pass to the successor States in equitable proportions, taking into account...the property rights and interests which pass to the successor States in relation to that State debt.” (This rule will apply in cases of dissolution, secession of part of territory, and transfer of part of territory.) Here, the rule is saying that, for example, if the debt is incurred in building a fleet of aircraft, then the Successor State that gets the aircraft should also pay the debt. A more general rule could be applied, however, that said that debt should pass to each successor in proportion to the *total assets* of the predecessor that pass to each successor. (This is done sometimes by agreement but it is not the default rule – although one supposes that it could be one form of distribution “in equitable proportions.”.)
- ✓ The default rules are different for new States emerging from foreign domination and for the uniting of States. According to the Vienna Convention, States emerging from foreign domination will inherit *none* of the debt of their predecessors, and a unified State will inherit *all* of the debt of its predecessors.

✿ Recognition of Governments

- ✓ Change of government is quite common. In democracies, elections often result in the formation of new governments. For the purposes of international law, a change in government is not a problem. The international obligations of a State do not change when the government changes.
- ✓ Problems may arise when a change in government happens through unconstitutional means, as for example by revolution or military coup. In such cases, other States' governments may not like the new government and may want to change their relations with it.
- ✓ Each State has discretion as to how it will conduct its foreign relations. Recognition of new governments is thus a decision for each State to make on its own. The issue of recognition is separate from the issue of whether to continue diplomatic relations, travel, and trade. A government may decide, again at its discretion, to recognize a new government but nonetheless to cut off diplomatic relations and trade with a new government. A State also may make *no statement* as to whether it recognizes or does not recognize a new government.
- ✓ To the extent that recognition practice affects the internal affairs of a State – as would be the case if lack of international recognition weakened a new government – it could be argued that recognition of governments is interference in the sovereignty of a State.
- ✓ The U.S. for some time applied the so-called “Tobar Doctrine” which said that, in order to promote democratic transfers of power, new governments formed by use of force or subversion of

legitimate democracies would not be recognized. The idea was to use recognition practice to promote a certain type of government in other States. This certainly comes close to interference in another State's internal affairs. One aspect of sovereignty is the right to form whatever type of government a State wants.

- ✓ In the 1970s the U.S. moved away from this practice: “In recent years, U.S. practice has been to deemphasize and avoid the use of recognition in cases of changes of governments and to concern ourselves with the question of whether we wish to have diplomatic relations with the new governments.” (1977). this is the prevailing view – that it is better not to engage in recognition practice at all. It has become known as the “**Estrada doctrine.**”
- ✓ Despite the logic and current popularity of the Estrada Doctrine, there are situations when the international community *must* determine the legitimacy of a new government. First, there are the so-called ***de jure* criteria of governmental legitimacy**. The question is, Does the government have a legal title to govern (based on internal laws)? Going by these criteria, all governments formed by revolutions are out. This presents obvious problems, considering the number of governments formed illegally, including the U.S. government which was originally the product of a revolt from Britain. On the opposite end there are ***de facto* criteria**. The only question here is whether the

government has effective control over the State's territory. This is the accepted approach in international law.

CHAPTER 3: INTERNATIONAL ORGANIZATIONS AND OTHER INTERNATIONAL ACTORS

- ✓ The prototypical international organization is the United Nations.
- ✓ Undoubtedly, the UN has not met the expectations of U.S. President Woodrow Wilson who in 1919 encouraged the formation of the League of Nations, the precursor to the United Nations, and envisioned an era of peaceful cooperation among States.
- ✓ The ineffectiveness of the League was proven in 1935 when Italy invaded Ethiopia in blatant violation of the Covenant of the League and the League failed to muster the will of its member States to oppose the aggressor Italy.
- ✓ The UN is modeled on the League of Nations and carries forward the League's intent to prevent wars among States.
- ✓ Central to the structure of the League and subsequently the UN is the ideological balance between democratic proto-"World Parliament" representing each State equally and the "realpolitik" of the Great Powers that concedes the greater influence of certain States. The UN has as its proto-"World

Parliament” the General Assembly where every State can participate and every State has one vote.

As for realpolitik, this is apparent in the structure of the Security Council which gives permanent place and greater influence to the five victorious powers of World War II – France, Britain, U.S., China, and Russia.

- ✓ The UN is the chief among many international organizations that attempt to coordinate the actions of States in particular subject areas and particular regions.
- ✓ Other international organizations are more political in nature and have a wider scope. This is true of the UN as well as for the many regional organizations like the Organization of American States and the African Union. Many of the regional arrangements are now rather complex, especially the European Union which contains the structures for everything from economic integration to human rights litigation.

1. Characteristics of International Organizations

- ✓ The term “international organization” is meant to designate a distinct type of organization with particular characteristics. This is important because international organizations have attained a special status in international law that other organizations like NGOs do not have.
- ✓ An international organization is an organization, typically established by treaty, whose members are States or other international organizations. When the UN or the African Union or the World

Trade Organization meets to make a decision, it is not individuals who sit and vote their interests there but rather representatives of States who speak in favor of State interests.

- ✓ The treaty that establishes an international organization usually acts as a constitution for that organization. This is the case with the UN; its Charter sets out the fundamental structure and rules of the organization. If someone has a question about what UN organs can and cannot do, the Charter is the place to go for an answer.
- ✓ International organizations have taken on many of the characteristics of States in the international system, as explained previously. International organizations can enter into treaties. The UN had to enter a treaty with the U.S. to establish the UN headquarters in New York.
- ✓ Like States, international organizations can sue and be sued in national and international tribunals. Like States, international organizations enjoy certain privileges and immunities, as for example those enjoyed by UN diplomats traveling abroad on UN business.
- ✓ International organizations are the creation of States, and their powers are limited to the powers that the constituting States have given them.
- ✓ States have privileges and immunities that are general whereas international organizations have only such privileges and immunities as are necessary to carry out the organization's functions. An international organization cannot invoke "sovereign immunity" – immunity from liability in foreign

courts in cases involving official acts – because an international organization is not a sovereign.

Also, only States can appear before the International Court of Justice in contentious cases.

International organizations have to resort to other international tribunals to resolve their disputes.

- ✓ In the early years of the United Nations, the status of international organizations in international law still was not clear. This is the problem of “legal personality” – can international organizations be the holders of rights and duties at the international level at all? Previously, only States had legal personality in the international system. A significant number of international organizations already had come into existence by the time the UN was created. In the UN’s activities, however, it faced the question of legal personality early on.
- ✓ Competence to bring an international claim is, for those possessing it, the capacity to resort to the customary methods recognized by international law for the establishment, the presentation and the settlement of claims. Among these methods may be mentioned protest, request for an enquiry, negotiation, and request for submission to an arbitral tribunal or to the Court in so far as this may be authorized by the Statute. This capacity certainly belongs to the State; a State can bring an international claim against another State. Such a claim takes the form of a claim between two political entities, equal in law, similar in form, and both the direct subjects of international law...

- ✓ The subjects of law in any legal system are not necessarily identical in their nature or in the extent of their rights, and their nature depends upon the needs of the community. Throughout its history, the development of international law has been influenced by the requirements of international life, and the progressive increase in the collective activities of States has already given rise to instances of action upon the international plane by certain entities which are not States. This development culminated in the establishment in June 1945 of an international organization whose purposes and principles are specified in the Charter of the United Nations. But to achieve these ends the attribution of international personality is indispensable.
- ✓ The Organization was intended to exercise and enjoy, and is in fact exercising and enjoying, functions and rights which can only be explained on the basis of the possession of a large measure of international personality and the capacity to operate upon an international plane. It is at present the supreme type of international organization, and it could not carry out the intentions of its founders if it was devoid of international personality. It must be acknowledged that its Members, by entrusting certain functions to it, with the attendant duties and responsibilities, have clothed it with the competence required to enable those functions to be effectively discharged.
- ✓ The next question is whether the sum of the international rights of the Organization comprises the right to bring the kind of international claim against a State to obtain reparation in respect of the

damage caused by the injury of an agent of the Organization in the course of the performance of his duties. Whereas a State possesses the totality of international rights and duties recognized by international law, the rights and duties of an entity such as the Organization must depend upon its purposes and functions as specified or implied in its constituent documents and developed in practice.

- ✓ When the Organization has sustained damage resulting from a breach by a Member of its international obligations, it is impossible to see how it can obtain reparation unless it possesses capacity to bring an international claim. It cannot be supposed that in such an event all the Members of the Organization... must combine to bring a claim against the defendant for the damage suffered by the Organization.

The Structure of the United Nations

- ✓ The entire UN Charter must be understood “in light of its object and purpose.” In many circumstances Member States are called on to act in a way consistent with the purposes of the UN.
- ★ The first purpose is **“to maintain international peace and security.”** This is a continuation of the mission of the League of Nations and is expressed in the first sentence of the Charter Preamble “We the peoples of the United Nations determined to save succeeding generations from the scourge of war...”

- ★ The second purpose is **“to develop friendly relations among nations...”**
- ★ The third purpose is **“to achieve international cooperation in solving international problems of an economic, social, cultural, or humanitarian character and in promoting...human rights...”** In other words, the UN will serve as a forum for discussing and solving international problems.
- ★ The fourth and final purpose is **“to be a center for harmonizing the actions of nations...”** This merely confirms the general commitment of Member States to joint action in all international matters.
- ✓ **The Security Council is really the only organ that can pass and enforce binding resolutions.** Nonetheless, **the General Assembly at least may bind Member States in regard to certain budgetary matters**, and the **decisions of the ICJ in contentious cases are binding on the State parties before the Court.** In practice, the UN remains a loose association of essentially independent States rather than a world government with control over its constituent Members. In general, so long as the UN is acting in accordance with the Charter, the Members States are supposed to cooperate. Member States are committed to “give the UN every assistance in any action it takes in accordance with the present Charter...” (Article 2(5)). **At the same time, the UN has consented not to intervene “in matters which are essentially within the domestic**

jurisdiction of any state...,” except for certain actions undertaken by the Security Council (Article 2(7)). Thus Member States have committed to some international governance but with the caveat that they continue to control their domestic affairs.

- ✓ The UN Charter contains a “supremacy clause” (Article 103) making Charter provisions “supreme” over any other treaty obligation that a Member State may have. This would prevent a Member State from using its other treaty commitments as an excuse to get out of obligations to the UN. A Member State’s UN obligations are some of the highest obligations that it has on the international plane.
- ✓ The General Assembly (GA) is the Parliament of the UN, but it is a Parliament with little or no legislative power. GA resolutions are like recommendations to Member States – the resolutions are not binding.
- ✓ As a “legislature” the GA’s scope is general – it may discuss and make recommendations on any matter within the scope of the Charter (Article 10). Also, the GA may be an advisor to the Security Council (Article 10). In this role the GA sometimes brings matters to the attention of the Security Council and makes recommendations. Notably, if the Security Council has taken up a matter already, the GA cannot comment to the Security Council on that matter unless the

Security Council asks for advice. Actually, the GA is not supposed to comment at all on any matter that the Security Council “remains seized of” (see Article 12).

- ✓ **All States are members of the GA, and each State has one vote** (see Article 18). For “**important questions**” **two-thirds** of the members present must vote in favor. For “other questions” **a simple majority will prevail**. There are also **subsidiary bodies within the GA with similar procedures, for example the UN Human Rights Council**, composed of 47 member states elected by the GA. These subsidiary bodies conduct studies and prepare resolutions for consideration by the GA.
- ✓ **The Security Council (SC), compared to the GA, has more power, but it is exercised within a narrower scope.** In fact, the SC passes both non-binding resolutions and binding resolutions. **The binding resolutions may be passed only when the SC is taking action “for the maintenance of international peace and security.” (Article 24.)** **Seemingly the SC has wider discretion in passing non-binding resolutions.** Nonetheless, **international peace and security remains the SC’s “primary responsibility.”** By “primary” is meant that other organs like the GA may have secondary roles in maintaining international peace and security.
- ✓ The SC is a far more exclusive body than the GA. **The SC consists of fifteen members – five permanent members and ten rotating members with two-year terms.** A resolution requires **nine votes** to pass. **The permanent members have a veto power over all resolutions concerning non-**

procedural matters. The Charter states that a resolution must have “the concurring votes of the permanent members.” (Article 27.) This provision has been modified by the subsequent practice of the SC. Now it is understood that abstentions by permanent members or even failure to vote due to absence from a meeting count as “concurring votes” and, as such, will not prevent a resolution from passing.

- ✓ The **Secretariat** is composed of all the administrative staff of the UN and headed by the Secretary-General. Although the role of the Secretary-General as a spokesman for the UN may lend to this position an aura of power, the fact is that the Secretary-General has a limited ability to influence decision-making. At best the Secretary-General may “bring to the attention of the Security Council any matter which in his opinion may threaten the maintenance of international peace and security.” (Article 99.) The Secretary-General is more the head of UN employees than the head of the UN itself.
- ✓ The **International Court of Justice** functions under its own statute which is “an integral part” of the Charter and is annexed to it. (Article 92.) The Court has fifteen judges all from different States. (The judges are elected by the GA and SC, each body voting separately.) Two types of cases come before the Court – contentious cases between States and requests for advisory opinions from organs of the UN or from specialized agencies. Although Member States under

the Charter have an obligation to resolve their disputes by peaceful means (article 33), **there is no specific obligation to use the ICJ.** States must consent to the jurisdiction of the ICJ in contentious cases, either at the time the dispute arises or beforehand by a separate treaty. States also may accept the jurisdiction of the ICJ generally, or for a specified category of cases, by communicating this in a declaration and filing it with the UN. In fact, the ICJ has been underused by State parties. From 1946 to 1996, only one hundred cases came before the Court. The GA has passed several resolutions calling for greater use of the Court, but Member States remain reluctant.

- ✓ **The Economic and Social Council** functions like a mini GA with a special focus on economic, social, and humanitarian issues. Like the GA, it has subsidiary organs, for example the UN Environment Program. Each member has one vote and a simple majority will prevail. ECOSOC makes studies and reports and may bring matters to the attention of the GA.
- ✓ **The Trusteeship Council** was created to monitor those colonies placed under the administrative authority of another State following World War II. The trust system was similar to the mandate system administered by the League of Nations. The Trusteeship Council was composed of the five permanent members of the Security Council. Originally it monitored the eleven trust territories, but it suspended its operations with the independence of the last trust territory in 1994.

✓ The UN has many problems in practice – most significantly the problem of preventing aggression and war by States – but the major *structural* problems are two.

★ First, there is some confusion as to the respective areas of authority of the SC and the GA.

★ Second, there is some question as to whether the ICJ can review the activities of the SC and GA and pass judgment on them. The obvious solution would be to give the ICJ the power of judicial review over the actions of the other UN organs.

A Note on the African Union

✓ The African Union is a regional international organization of special concern

✓ In the first place, the headquarters of the African Union is in Addis Ababa. Also, the African Union is modeled on the European Union, the most radical and most interesting international organization of the present time. (Unfortunately, the European Union will not receive much treatment here because of the complexity of its structure and activities.) One of the most interesting aspects of the European Union is the extent to which it has achieved economic integration among the countries of Europe, printing and controlling a uniform currency and regulating banking from a central body. The African Union is attempting to follow some of the successes of the European Union.

✓ The African Union is a work in progress, so it is perhaps unwise to make conclusive observations about it at the present time.

- ✓ May 26, 2001, marked the turning of a page in the history of the African continent. On this date, the Constitutive Act of the African Union entered into force, representing the start of a new political, judicial, and economic organization for Africa. The organization, simply called the "African Union" (Union), comprises, among other institutions, the Pan-African Parliament, the Court of Justice, and the Central Bank. The entry into force of the Constitutive Act also marks the imminent end of the Organization of African Unity (OAU), which has united all African states since 1963.
- ✓ The Court of Justice will be a new mechanism of dispute settlement and conflict prevention or resolution. While the Constitutive Act is silent on the court's jurisdiction, the AEC Treaty envisages the Court of Justice as competent to decide actions brought by any member state *or* the assembly if treaty provisions are alleged to have been violated or an organ, authority, or member state is believed to have exceeded its competence or abused its powers. **The court would also give advisory opinions at the request of the Assembly of the Union (Assembly) or the Executive Council. The Assembly could empower the court to assume jurisdiction over all but a few disputes, and its decisions would be binding on all parties...**

...

The organs and institutions of the Union are defined and described in CA Articles 5 through 22. Article 5(1) declares these to be (1) the Assembly of the Union; (2) the Executive Council; (3) the

Pan-African Parliament; (4) the Court of Justice; (5) the Commission; (6) the Permanent Representatives Committee; (7) the specialized technical committees; (8) the Economic, Social and Cultural Council; and (9) the financial institutions. The door is also left open for the Assembly to establish new organs as and when deemed necessary (Art. 5(2)).

While the Pan-African Parliament, the Court of Justice, and the three financial institutions (consisting of the African Central Bank, the African Monetary Fund, and the African Investment Bank) draw the greatest interest, these are the least-developed organs in the Act. In each instance it provides for their establishment in a single sentence or paragraph and simply states that all further details are to be defined in protocols...

The Assembly of the Union, like the Assembly of the OAU, will be the supreme organ of the organization. It will also be composed of all fifty-three heads of state and government forming the Union and will meet and make decisions under the same terms as the OAU Assembly.ⁿ⁶¹ Exceptions arise from the additional functions assigned to the new organs and institutions. For instance, the Assembly of the Union holds the additional power to appoint and terminate the appointment of judges of the Court of Justice.ⁿ⁶² Through its system of democratic voting (one vote is ascribed to each

state), the Assembly is responsible for determining the common policies of the Union. It is also empowered to give directives to the Executive Council on various matters, including the management of conflicts and other emergencies.

The second organ to assist the Assembly, and indeed the entire Union, is the Commission (the secretariat) of the Union.... The effective functioning of the Commission will depend to a large extent on the financing and staffing it receives. As for the chairmanship, no light is shed on the way the chairman is to be appointed or the office's functions and conditions of service... Whether the chairman of the Union will be endowed with greater political powers (as commentators strongly recommended for the OAU secretary-general) or whether he or she will remain restricted to a more administrative function is therefore difficult to predict...

The Executive Council is perhaps the second most influential organ of the Union. Although named differently, it is identical, in essence, to the Council of Ministers of the OAU. n66 Article 13 of the CA contains a list of areas of common interest to member states requiring the council to make decisions on policy. These range from the management of foreign trade and mineral resources to matters of immigration and transport...

...

To turn specifically to omissions from the CA: Evidently, some suggestions for reforming the OAU were entirely excluded from the Constitutive Act. Two prominent examples are the recommendations for a Security Council and a standing military force...

...

At present, the African Union resembles but an empty shell. Although the organs and institutions forming its structure are provided for by the Act and offer great potential for the continent, their composition, powers, functions, organization, and rules of procedure have yet to be specified. In most cases, these are to be defined in protocols that have not even been drafted, let alone adopted.

...

Another major obstacle [to the realization of a fully functioning Union] is the current state of the African economy. The African Union is looked to as an engine for economic development and success for the ailing region. However, in considering this possibility, one cannot avoid recognizing that agriculture constitutes the economic base of most African countries and that very little trade can be expected to be generated within the region in the near future. Most African states produce cash crops (such as coffee, cotton, tobacco, and flowers), which are not in high demand on the continent. n81 Kwaku Danso further observes that "the widely differing stages of development within the continent,

the strength of other global trading blocs, the lack of a common currency, post-colonial ties, huge continental debts, and poor communications which inhibit free interstate movement of goods and services are major obstacles facing continental integration."...

The financial ability of the African region to run the Union is also a significant concern. The new organs, such as the court, the parliament, and the Central Bank in particular, will need adequate financial resources to set themselves up and establish their credibility. Yet the vast majority of African countries grace the lowest end of the list of the poorest countries in the world, with the region's average annual per capita income amounting to some U.S. \$ 200. Such a bleak balance sheet may lead one to question whether Africa is not biting off more than it can chew. On the other hand, the dire economic situation of the continent may arguably be explained in large part by the failure of African states to organize themselves and achieve peace, security, and stability as a basis for pursuing economic development. To the extent that this is true, investment in an effective Union seems imperative should aspirations for African prosperity have any chance to be realized.

...

As things stand, the Union serves as a guide map of where Africa wants to go. It points in the direction of what has to be done to achieve security, stability, and economic development in the region.

Working toward a functional and meaningful regional parliament, central bank, and court could stimulate the region into real development...

Other International Actors: NGOs, Corporations, and Individuals

- ✓ In general, these non-state actors do not have the status of legal persons at the international level, so they cannot have rights and duties under international law. Rather, their activities are governed by national laws. This is something of an oversimplification, though, and it is important to consider how certain non-state actors are involved in international law.
- ✓ NGOs play a very prominent role in international relations. NGOs attend international law-making conferences as observers – even present their views in some cases – and lobby governments behind the scenes. NGOs also draw government attention to particular issues and sometimes push the government to propose a treaty or enter a treaty. In addition, an NGO may act like a watchdog, reporting on international events and exposing non-compliance with international law. Under Article 71 of the UN Charter, ECOSOC may arrange to consult with NGOs in order to gain expert opinion and hear the views of certain interest groups. Many have asked why we should not allow the same arrangement for the General Assembly. Finally, although NGOs may not submit briefs

directly to international dispute settlement bodies like the ICJ or WTO dispute settlement body, NGOs nonetheless often get member States to submit briefs for them.

- ✓ **Corporations** are equally involved in international relations. It is common for a corporation to exist under the laws of one State, the “home” State, and operate in other States, the “host” States. International corporations enter agreements with host States that give special privileges to the corporation under national laws. In general, corporations have a strong influence over State governments. A corporation may push its home State to make a claim against its host State regarding the treatment of its business.
- ✓ In the traditional State system, **an individual’s rights** on the international level were mere derivatives of States’ rights. If Ethiopia unjustly harmed some foreign person in its territory, for example, this would be a wrong to the foreigner’s home State, which could then sue Ethiopia for redress. In fact, the foreigner’s home State could sue, recover monetary damages from Ethiopia, and then never share this money with the injured foreigner himself!
- ✓ **Three new areas of international law give greater standing to individuals in the international arena – human rights law, international humanitarian law (law of war), and international criminal law.** A person who suffers a human rights violation may have an action against the offending State in some international court. A person who commits an atrocity such as genocide may be brought to justice

and sentenced before an international criminal court. In such cases, international law is acting directly on individuals.

CHAPTER 4: INTERNATIONAL CUSTOMARY LAW

- ✓ Custom is losing its status as a strong source of authority in international law. The principle *pacta sunt servanda* – that a State must abide by its treaty obligations – is an international custom. From the principle of sovereignty to the treatment of foreign emissaries, the international system is founded on customs. It seems then that critics of customary law must be critics of the entire international system.
- ✓ As Oppenheim says, “Custom is the oldest and the original source of international law as well as of law in general.” Like the customs of a particular people, customs of nations derive from long established practices that have attained the status of accepted norms. In a sense, both types of customs are socially enforced, and a violation is cause for general shock and scorn rather than immediate punishment by a government authority. Notably, the positivist school of thought considers all custom to be something less than law, a lower form of obligation that plays a very small role in influencing people’s behavior. This is in fact an anachronistic view. It is better to say that custom *becomes* less influential the more we teach and believe that it does not matter. Thus,

international customs were very influential on people's behavior in the 17th century – especially European peoples who shared a common cultural frame. At that time performing the accepted protocol in meetings between nations was something of a matter of personal honor.

- ✓ Its origin, like the origin of all international law, is with natural law theory. Natural law is law that stands on reason alone without the support of any government authority. Natural law theorists felt that certain laws arose from the nature of things and therefore would be found in every nation. In the same way, universal principles would arise in the dealings among nations. These are international “laws” (now called “customs”), and their universality bespoke their “natural” origins. Natural law theory was attacked and more-or-less defeated by 19th-century positivists who held that any “law” worthy of that name must be derived from a secular authority, a sovereign government in short, that could enforce the law through the threat or use of force.
- ✓ Positivism presents obvious problems for the international system, most significantly that there is no international sovereign government that can enforce international laws. Nonetheless, international law has adapted to fit the positivist position. Custom has shifted from a law based on the principles of “nature” to a law based on the *consent* of sovereign governments. The new view requires that the custom be practiced by a certain number of nations – thus showing their consent – before the custom becomes binding.

Background Principles and the Hierarchy of Sources in International Law

- ✓ As one international law scholar puts it, “International law is made chiefly in one of two ways: through agreements between states – ‘treaties’ – or through practice by states that fulfills certain requirements – ‘customary international law’... [International law] is created directly by the very entities to which it is chiefly addressed, namely, states, which also enforce it.”
- ✓ There are two additional sources of authority as well. Fortunately, the ICJ statute contains a clear list of the sources of international law. This list applies directly to cases before the ICJ and indirectly to all other cases.

Statute of the International Court of Justice

Article 38

1. The Court, whose function it is to decide in accordance with international law such disputes as is submitted to it, shall apply:
 - a. international conventions, whether general or particular, establishing rules expressly recognized by the contesting states;
 - b. international custom, as evidence of a general practice accepted as law;
 - c. the general principles of law recognized by civilized nations;

d. Subject to the provisions of Article 59, judicial decisions and the teachings of the most highly qualified publicists of the various nations, as subsidiary means for the determination of rules of law.

2. This provision shall not prejudice the power of the Court to decide a case *ex aequo et bono*, if the parties agree thereto.

- ✓ The first three sources are binding sources of international law, and the fourth source is not binding but rather *persuasive* as “evidence” of international law. As stated in Article 59, referred to in the article above, “The decision of the Court has no binding force except between the parties and in respect of that particular case.” This affirms that ICJ decisions are not binding on subsequent cases; there is no *stare decisis* in international law.
- ✓ It is generally accepted that the sources of international law are listed in the ICJ statute in *order of importance*
- ✓ Certain customs are of a higher order. They have been described by scholars as “axiomatic” or “constitutional” or “fundamental.” These are the background principles of the international system and they are treated differently from other customs. In the first place, it is not necessary to prove that they exist. It is assumed. Second, in fitting with their “constitutional” status, they stand somewhat above other laws in the international system.

- ✓ The first such principle is State sovereignty. Many other background principles can be derived from sovereignty: the equality of States, consent as a basis for international obligation, and the right to territorial integrity. As explained previously, *pacta sunt servanda* is also a background principle of international law. It means simply that international agreements must be observed in good faith. Finally, there are certain principles that can be derived from the concern of the international community with peace and security.
- ✓ Another category of higher order customs exists called “*jus cogens*” or peremptory norms. These are not “constitutional” principles but rather are fundamental for other reasons – for *moral* reasons. Again, in the hierarchy of international laws, peremptory norms are at the top, taking precedence over other customs and over treaty law. Unfortunately, no one agrees as to what international norms are peremptory. Possible examples include the prohibition on the use of force, the principle of self-determination, and the prohibition against genocide, torture, slavery, piracy, and *apartheid*. The international community reacts to such things as colonialism or slavery or genocide with such shock and horror, with such unanimous disapproval, that it seems clear that the norm prohibiting them has become peremptory. Nonetheless, there is no test to determine whether a norm has become peremptory. How many States have to agree that a practice is horrible and shocking before this practice is prohibited according to peremptory norms? What if a few States hold out against

international opinion? For example, consider how South Africa held out even after the rest of the international community had agreed that *apartheid* was a violation of a fundamental international norm.

It is not clear how these fundamental principles relate to one another or to other international laws. From the beginning there is a conflict between State sovereignty and *pacta sunt servanda*. Presumably, an absolutely sovereign State cannot be forced by an international body to observe its treaty obligations. To be sovereign is to be your own master; to sign treaties like the UN Charter is to give certain international bodies like the Security Council and the ICJ mastery over you. The SC may force you to comply with obligations to refrain from the use of force; the ICJ may judge that you have violated international law and must pay damages. For the same reason, there are conflicts between State sovereignty and *jus cogens* norms like the prohibition against torture. If a sovereign State wants to torture its citizens, who can say no? Many other such conflicts exist, for example between State sovereignty (i.e. territorial integrity) and the principle of self-determination (which some scholars deem to be *jus cogens*). The resolution of such conflicts is a long and complex matter that the student may consider on his or her own.

The so-called “Lotus principle” is not limited in application to questions of jurisdiction in national courts. (The subject of how international law issues are adjudicated in national courts will be taken up specifically in later chapters). Rather, the Lotus principle has been taken generally to mean that States have residual sovereignty or power in the absence of international law. How far does this residual power go? Consider the following discussion by the ICJ in *Legality of the Threat or Use of Nuclear Weapons*.

***Legality of the Threat or Use of Nuclear Weapons*, ICJ Advisory Opinion, 1996.**

1. The question upon which the advisory opinion of the Court has been requested is set forth [as follows]:

The General Assembly...

Decides... to request the International Court of Justice urgently to render its advisory opinion on the following question: 'Is the threat or use of nuclear weapons in any circumstance permitted under international law?'

21. The use of the word "permitted" in the question put by the General Assembly was criticized before the Court by certain States on the ground that this implied that the threat or the use of nuclear weapons would only be permissible if authorization could be found in a treaty provision or in customary international law. Such a starting point, those States submitted, was incompatible with the very basis of international law, which rests upon the principles of sovereignty and consent; accordingly, and contrary to what was implied by use of the word "permitted", States are free to threaten or use nuclear weapons unless it can be shown that they are bound not to do so by reference to a prohibition in either treaty law or customary international law. Support for this contention was found in dicta of the Permanent Court of International Justice in the "*Lotus*" case that "restrictions upon the independence of States cannot . . . be presumed" and that international law leaves to States "a wide measure of discretion which is only limited in certain cases by prohibitive rules"... Reliance was also placed on the dictum of the present Court in the case concerning *Military and Paramilitary Activities in and against Nicaragua* (*Nicaragua v. United States of America*) that:

in international law there are no rules, other than such rules as may be accepted by the State concerned, by treaty or otherwise, whereby the level of armaments of a sovereign State can be limited (*I.C.J. Reports 1986*, p. 135, para. 269).

For other States, the invocation of these dicta in the "*Lotus*" case was inapposite; their status in contemporary international law and applicability in the very different circumstances of the present case were challenged. It was also contended that the above-mentioned dictum of the present Court was directed to the *possession* of armaments and was irrelevant to the threat or use of nuclear weapons.

Finally, it was suggested that, were the Court to answer the question put by the Assembly, the word "permitted" should be replaced by "prohibited".

22. The Court notes that the nuclear-weapon States appearing before it either accepted, or did not dispute, that their independence to act was indeed restricted by the principles and rules of international law, more particularly humanitarian law..., as did the other States which took part in the proceedings. Hence, the argument concerning the legal conclusions to be drawn from the use of the word "permitted", and the questions of burden of proof to which it was said to give rise, are without particular significance for the disposition of the issues before the Court.

23. In seeking to answer the question put to it by the General Assembly, the Court must decide, after consideration of the great corpus of international law norms available to it, what might be the relevant applicable law.

Dissenting Opinion of Judge Shahabuddeen. *Nuclear Weapons* case.

The notions of sovereignty and independence which the “Lotus” Court had in mind did not evolve in a context which visualized the possibility that a single State could possess the capability of wiping out the practical existence both of itself and of all other States. The Court was dealing with a case of collision at sea and the criminal jurisdiction of States in relation thereto – scarcely an earth-shaking issue. Had its mind been directed to the possibility of the planet being destroyed by a minority of warring States, it is not likely that it would have left the position which it took without qualification...

Whichever way the issue in “Lotus” was determined, the Court’s determination could be accommodated within the framework of an international society consisting of “co-existing independent communities”. Not so as regards the issue whether there is a right to use nuclear weapons. Were the Court to uphold such a right, it would be upholding a right which could be used to destroy

that framework and which could not therefore be accommodated within it. However extensive might be the powers available to a State, there is not any basis for supposing that the Permanent Court of International Justice considered that, in the absence of a prohibition, they include powers the exercise of which could extinguish civilization and annihilate mankind and thus destroy the framework of the international community; powers of this kind were not in issue. To the extent that a course of action could be followed by so apocalyptic a consequence, the case is distinguishable; it does not stand in the way of this Court holding that States do not have a right to embark on such a course of action unless, which is improbable, it can be shown that the action is authorized under international law...

It is implicit in “Lotus” that the sovereignty of other States should be respected. One of the characteristics of nuclear weapons is that they violate the sovereignty of other countries who have in no way consented to the intrusion upon their fundamental sovereign rights, which is implicit in the use of the nuclear weapon. It would be an interpretation totally out of context that the “Lotus” decision formulated a theory, equally applicable in peace and war, to the effect that a State could do whatever it pleased so long as it had not bound itself to the contrary. Such an interpretation of “Lotus” would cast a baneful spell on the progressive development of international law.

The problem in the *Lotus* case can be stated in another way. International customs and background principles like State sovereignty are default rules filling in the gaps when there is no treaty on point. In some cases – like the *Lotus* case and the *Nuclear Weapons* case – it appears that there is no default rule. So what then? The Court has different options. The Court's solution in the *Nuclear Weapons* case was to declare a *non liquet*, meaning literally “it is not clear.” The Court said in its decision, “...in view of the current state of international law...the Court cannot conclude definitively whether the threat or use of nuclear weapons would be lawful or unlawful in an extreme circumstance of self-defense...” By implication, the Court is saying that the international system is not a complete system of laws. As an alternative, the Court could use its own reasoning to fill in the gaps, as is done in courts in common law States. Along these lines, the Court could go back to a default principle like sovereignty, which is what the Court did in the *Lotus* case (and what the Court flatly refused to do in the *Nuclear Weapons* case). Such a default rule would cover almost all the gaps in the international system. Simply put, the rule says that, in the absence of law, States can do what they want. The default rule could be formulated in a different way, however. One could argue that, in the absence of express authority in international law, a State may act only in ways that do not affect the sovereignty of other States. In any case, the rule articulated in the *Lotus* case was a court-made rule, derived from

sovereignty but derived not inevitably by logic but rather in a way based on the choices of the judges on the Court.

In practice, international tribunals often apply general principles of international law to make the default rules – customary rules – complete. Consider how the ICJ reasons through its decision in the *Corfu Channel* case below.

Corfu Channel Case (U.K. v. Albania), ICJ 1949.

The obligations incumbent upon the Albanian authorities consisted in notifying, for the benefit of shipping in general, the existence of a minefield in Albanian territorial waters and in warning the approaching British warships of the imminent danger to which the minefields exposed them. Such obligations are based, not on the Hague Convention of 1907, No. VIII which is applicable in time of war, but on certain general and well-recognized principles, namely: elementary considerations of humanity, even more exacting in peace than in war; the principle of the freedom of maritime

communication and every State's obligation not to allow knowingly its territory to be used for acts contrary to the rights of other States.

Customary Law: State Practice and *Opinio Juris*

International customs are like an invisible set of rules. The “fundamental” customs just discussed at least are clear and well-accepted, even if they cannot be listed in a table of international rules. Other customs, however, are more elusive. “If treaties contain rules expressly recognized by states, customary international law...may be said to embody norms they tacitly accept, through their conduct.” (McCaffrey, 2006.) This so-called “tacit” acceptance is unspoken and unclear.

Thus, for those customs that are *not* “axiomatic” or “fundamental” it is necessary first to prove conclusively that they exist. Most litigation concerning custom will focus on this issue of whether the custom exists or not. Necessarily, to prove that the custom exists is to prove also what the custom is. So by the time one has finished this analysis, little remains but to apply the custom to the particular facts of the case.

Unfortunately, it is hard to prove that a custom exists. Two elements must be proven – State practice and *opinio juris*. “Practice” indicates the State’s overt behavior whereas *opinio juris* means the State’s belief that the practice is required as a matter of international law. These criteria, though perhaps clear in definition, have been notoriously subtle and confusing in application (as the student will see shortly). The criteria are so subtle that it appears sometimes as though the court is inventing the custom rather than finding it in the actions and statements of States. Whatever the case, as a formal matter the student always will conduct the same analysis in regard to each custom he or she wants to prove: show State practice and *opinio juris*.

Anthea Elizabeth Roberts, *Traditional and Modern Approaches to Customary International Law: A Reconciliation*, 2001.

The demise of custom as a source of international law has been widely forecasted. This is because both the nature and the relative importance of custom’s constituent elements are contentious. At the same time, custom has become an increasingly significant source of law in important areas such as human rights obligations... These developments have resulted in two apparently opposing approaches, which I term “traditional custom” and “modern custom”...

This article seeks to provide an enriched theoretical account of custom that incorporates both the traditional and the modern approaches rather than advocating one approach over the other. The Statute of the International Court of Justice describes custom as “evidence of a general practice accepted as law.” Custom is generally considered to have two elements: state practice and *opinio juris*. State practice refers to general and consistent practice by states, while *opinio juris* means that the practice is followed out of a belief of legal obligation. This distinction is problematic because it is difficult to determine what states believe as opposed to what they say. Whether treaties and declarations constitute state practice or *opinio juris* is also controversial. For the sake of clarity, this article adopts Anthony D’Amato’s distinction between action (state practice) and statements (*opinio juris*). Thus, actions can form custom only if accompanied by an articulation of the legality of the action. *Opinio juris* concerns statements of belief rather than actual beliefs. Further, treaties and declarations represent *opinio juris* because they are statements about the legality of action, rather than examples of that action. As will be demonstrated below, traditional custom and modern custom are generally assumed to be alternatives because the former emphasizes state practice, whereas the latter emphasizes *opinio juris*. What I have termed traditional custom results from general and consistent practice followed by states from a sense of legal obligation. It focuses primarily on state practice in the form of interstate

interaction and acquiescence. *Opinio juris* is a secondary consideration invoked to distinguish between legal and non-legal obligations. Traditional custom is evolutionary and is identified through an *inductive* process in which a general custom is derived from specific instances of state practice. This approach is evident in *S.S. Lotus*, where the Permanent Court of International Justice inferred a general custom about objective territorial jurisdiction over ships on the high seas from previous instances of state action and acquiescence.

By contrast, modern custom is derived by a *deductive* process that begins with general statements of rules rather than particular instances of practice. This approach emphasizes *opinion juris* rather than state practice because it relies primarily on statements rather than actions. Modern custom can develop quickly because it is deduced from multilateral treaties and declarations by international fora such as the General Assembly, which can declare existing customs, crystallize emerging customs, and generate new customs. Whether these texts become custom depends on factors such as whether they are phrased in declaratory terms, supported by a widespread and representative body of states, and confirmed by state practice. A good example of the deductive approach is the Merits decision in *Military and Paramilitary Activities in and Against Nicaragua*. The Court paid lip service to the traditional test for custom but derived customs of non-use of force and nonintervention from

statements such as General Assembly resolutions. The Court did not make a serious inquiry into state practice, holding that it was sufficient for conduct to be generally consistent with statements of rules, provided that instances of inconsistent practice had been treated as breaches of the rule concerned rather than as generating a new rule.

The tests and justifications for traditional and modern custom appear to differ because the former develops slowly through state practice, while the latter can arise rapidly based on *opinio juris*. This difference has spurred considerable discussion over two related issues. First, the legitimacy of traditional and modern custom has been debated at length. David Fidler characterizes the various approaches to this issue as the dinosaur, dynamo, and dangerous perspectives. The dinosaur approach focuses on traditional custom and argues that massive changes in the international system have rendered it an anachronism. For example, Jonathan Charney claims that the increasing number and diversity of states, as well as the emergence of global problems that are addressed in international fora, makes traditional custom an inappropriate means for developing law. The dynamo perspective concentrates on modern custom and embraces it as a progressive source of law that can respond to moral issues and global challenges. For example, Theodor Meron, Richard Lillich, and Lori Bruun argue that modern custom based on declarations by international fora provides an important source of

law for human rights obligations. Finally, the dangerous perspective views modern custom as a departure from the traditional approach that has created an opportunity for legal and political abuse. Thus, Michael Reisman characterizes the increased dependence on custom as a “great leap backwards” designed to serve the interests of powerful states. Similarly, Arthur Weisburd holds that modern custom often lacks the legitimacy of state consent because it is formed despite little, or conflicting, state practice.

Second, the divergence between traditional and modern custom has been criticized as undermining the integrity of custom as a source of law. Patrick Kelly argues that custom is an indeterminate and malleable source of law, simply a “matter of taste.” According to D’Amato, the modern approach trashes the theoretical foundations of custom by inverting the traditional priority of state practice over *opinio juris*. Sir Robert Jennings insists that “most of what we perversely persist in calling customary international law is not only *not* customary law: it does not even faintly resemble a customary law.” The phrases “modern,” “new,” “contemporary,” and “instant” custom appear inherently contradictory and obscure the real basis for forming this law. Hilary Charlesworth contends that modern custom can be rationalized only by dispensing with the traditional rhetoric of custom. Bruno Simma and Philip Alston argue that the modern approach has created an “identity crisis” for custom and would be better

understood as a general principle of international law. Likewise, Charney, Daniel Bodansky, and Hiram Chodosh conclude that modern custom is really a new species of universal declaratory law because it is based on authoritative statements about practice rather than observable regularities of behavior.

Both the legitimacy and the integrity of traditional and modern custom have received considerable attention and polarized positions are evident. However, few commentators have transcended these debates by attempting to provide an overall theory of custom. Frederic Kirgis rationalizes the divergence in custom by analyzing the requirements of state practice and *opinio juris* on a sliding scale. At one end, highly consistent state practice can establish a customary rule without requiring *opinio juris*. However, as the frequency and consistency of state practice decline, a stronger showing of *opinio juris* will be required. Kirgis argues that the exact trade-off between state practice and *opinio juris* will depend on the importance of the activity in question and the reasonableness of the rule involved. Simma and Alston claim that this approach reinterprets the concept of custom so as to produce the “right” answers. However, John Tasioulas argues that the sliding scale can be rationalized on the basis of Ronald Dworkin’s interpretive theory of law, which balances a description of what the law has been with normative considerations about what the law should be. This perspective shows

why the Court may be less exacting in requiring state practice and *opinion juris* in cases that deal with important moral issues.

1. State Practice

- ✓ A State's practice is what the State does over and over again. Actions, repeated with some regularity, give rise to expectations, and expectations shared by most States may become international legal obligations.
- ✓ Actions that are important to show "State practice" could for examples include official statements of policy made by governments; implementation of policy; other governmental acts like warfare and treaty-making; diplomatic correspondence; and decisions of national tribunals, among others.
- ✓ These actions may be internal or external, meaning that they may be actions undertaken with respect to that State's own territory and citizens or actions undertaken against or in cooperation with other States at the international level. These "actions" may be inactions as well, as when a State does not object to a practice that affects its interests.
- ✓ Scholars have debated whether evidence of State practice such as a treaty or a policy statement really counts as an "action" by a State. Some have pointed out that a treaty is a statement, not an action, and that statements should not be included in an analysis of State practice but rather should

be taken up in the analysis of *opinio juris*. After all, a statement is more indicative of belief (and *opinio juris* is a belief). Courts always start by saying that both State practice and *opinio juris* must be shown, but they do not always indicate clearly whether a particular piece of evidence shows State practice or whether it shows *opinio juris*.

- ✓ There are three questions of concern for showing State practice. First, **how many States engage in this practice** (i.e. how general and widespread is the practice)? Second, **are there any inconsistencies** (States engaging in contrary practice)? Third, **how long has the practice been on going?** These questions are interrelated. Strong evidence in favor of a custom on any one of the three questions will render the other questions less important. **So if a practice is very widespread it may be deemed a custom despite a few strong inconsistencies.** Furthermore, a practice that has been on going for the last 500 years may require less of a showing of generality and consistency in order to be a custom.
- ✓ The ICJ has stated, rather vaguely, that a “**very widespread and representative participation**” is **required for State practice.** Most international tribunals are selective when sampling State practice. **In other words, courts do not look at the practices of all States in the world but rather focus on the practices of certain select States.**

✓ There are several approaches to making selections of States and establishing generality. First **the court may focus on the practices of so-called “specially-affected” States**. If the emerging custom concerns the high seas, for example, then the court will focus on coastal States with significant maritime activities. In the same way, if the custom relates to the use of nuclear weapons, then the practices of States with nuclear weapons will be of particular interest. Second, a **court may select States from different geographic regions in order to have “representatives” from different parts of the world**. Thus the court may look at State practices from one State from each continent of the world. Finally, a court may select States practices from States in different categories of economic development. The assumption here is that States that are, for example, least-developed all have something in common and thus the court can use one of these least-developed States as a representative of the rest, one of the most-developed States as a representative from most-developed States, etc.

✓ Courts have at times **dispensed with the generality requirement altogether** and have concentrated on the practices of the particular litigants in the case on hand. One reason for this approach may be that courts in certain cases assume that a practice is widespread and consider only whether inconsistent practices by these particular litigants show that the custom cannot exist, despite the practice being widespread. In general, we should go beyond the practices of the

particular States involved in the dispute and try to establish some type of generality or “widespread” practice.

- ✓ A separate issue for the court is how to deal with examples of inconsistent practice. Courts require “constant and uniform usage.” This is to say that a practice must be consistent. A practice may be extremely widespread but nonetheless be contradicted in a few glaring instances by the opposite behavior. If the court is to find that a custom exists, it must deal with these examples of inconsistent practice. The court may consider how many States engaged in the inconsistent practice, how long the inconsistent practice went on, the subsequent practice of States, or even the attitude of the States themselves towards the inconsistency (in other words whether the State continued to justify itself in terms of the old custom or hide its inconsistent practice).
- ✓ In the past, courts required a significant amount of time to pass for a practice to become a custom. In recent times, however, state practices have become custom rather quickly, especially in areas of practice that involve the emergence of new technologies. Customs regarding international space travel, for example, came into existence rather quickly. Improved technology also has allowed more extensive use of the land under the sea known as the “continental shelf.”
- ✓ A final matter for concern in establishing State practice is, who has the authority to act on behalf of the State and establish the practice? For example, the State may publish a policy manual that

prohibits the use of torture by State officials. Police nonetheless may torture suspects in criminal cases on a regular basis. Which of these is the State practice, the policy manual put out by the State or the actions of the police? This matter is somewhat unresolved.

2. *Opinio Juris*.

- ✓ *Opinio Juris* is like a State's official stamp that converts that State's casual practice into a binding rule. To have custom, States must not only exhibit a certain practice; they must also believe that the practice is legally required. In short, *Opinio juris* is the expression by a State that it is following some practice because the State thinks that the practice is required as a matter of international law. This is the second criteria for custom, the so-called "subjective" element.
- ✓ Thoughts and beliefs have to be inferred from statements and actions. Moreover, *Opinio juris* is somehow circular. It is necessary to show that a State believes that a practice is required as a matter of law before that practice has actually become customary law.
- ✓ With *Opinio juris* we are looking for an added element that makes the State practice more serious and worthy of consideration as an international law.
- ✓ As pointed out by Roberts in the article reproduced above, courts in recent times increasingly rely on *Opinio juris* rather than State practice to prove a custom exists. It seems that if most States

express a belief that a rule should be binding, this is enough to make that rule binding as a custom.

Certainly, State practice should generally follow the State's belief, but cases of inconsistent practice may be overlooked so long as the State apologizes for its mistake and maintains its belief.

- ✓ Customs, after all, are *unexpressed* laws. With *Opinio juris* overemphasized, one gets the impression that customs are *expressed* laws that States are willing to commit to in their statements but not willing to commit to in any form – like a treaty provision – that has real punishments for disobedience.

Local and Regional Customs

- ✓ General customs, once established, will apply to every State in the world. Some have argued, however, that customary law may develop in a particular region or locality and apply only to the States in that region or locality. Presumably, local and regional customs must be proven in the same way that general customs are proven – by showing State practice and *opinio juris*.
- ✓ There are some problems with the theory of local and regional customs. First, **such a custom may affect the rights of States outside the region incidentally**. Only the other States in the region have tacitly consented to this. Along the same lines, it is clear that if the local or regional practice conflicts directly with an international custom of general applicability, then the local or regional practice cannot be a custom.

- ✓ Because there are fewer States involved at the regional and local level, a greater amount of **uniformity in practice may be required**. For example, let us say that there are 200 States in the world. If two States engage in an inconsistent practice, this may be ignored for the purposes of establishing the custom because 99% of the States concerned engage in the custom. However, let us say that there are 5 States in a particular region. If two States engage in an inconsistent practice, then you have only 60% conformity. Obviously, it will be hard to establish a custom based on 60% conformity.
- ✓ How many States are necessary to create a unique local custom? In the *Case Concerning Right of Passage over Indian Territory* (1960), the ICJ found the existence of a custom between just two States, India and Portugal. Likely, the burden of proof is higher in such a situation and more evidence – and complete consistency – will be required to establish the custom.

Which States Are Bound by Custom?

- ✓ If a custom is general, all States in the world are bound by it.
- ✓ If a custom is regional or local, only States in that region or locality will be bound by it.
- ✓ The short answer is that States that say and do nothing during the time when a custom is developing will be bound by that custom. The same applies to new States. They will be bound by all customs in existence at the time of State formation. This is unusual in international law. Usually we think of

States as sovereign and independent and thus only bound when they consent. Some argue that saying and doing nothing is a type of *tacit* consent on the part of States. Others say that there is a “presumption of acceptance of a rule” with customary law such that we look not for a State’s acceptance but rather for the lack of an objection.

- ✓ However we twist the argument, **the fact remains that States are bound to customs even when they do not consent to those customs**. This is seen most clearly in the situation when old customs are imposed on newly emerging States. How can we apply the concept of tacit consent or presumption of acceptance to a new State that simply did not exist when the custom was forming? A State not in formation at the time the custom is forming cannot be said to “consent” to the custom. In fact, the new States that emerged from colonialism argued just that. These States said that they should not be bound by customs that they played no part in creating and that were established by the colonial powers from which they had achieved independence. **In practice, however, these States were obliged to accept the obligations imposed by custom along with the benefits enjoyed under customary law.**
- ✓ Sometimes States object to emerging customs. Unfortunately for the State concerned, one objection to a new rule will not prevent that rule from becoming customary law.

- ✓ The only way that a State can get out of a general custom is by objecting to that custom loudly and continuously during the process of the formation of the custom. A State that does this may obtain “persistent objector status.”
- ✓ It should be noted that there are really two requirements to obtain persistent objector status. First, **the State must object when the custom is in the process of forming.** The moment that the emerging rule becomes a custom, all objections will be useless. (In short, a State cannot object to an already-formed custom and claim that the custom does not apply to it.) Second, **the objection must be clear and “persistent.”** One mild objection to an emerging custom probably will not be enough. Commonly, a State will object in regular public statements or refuse to sign a certain treaty that supports the custom or make a conspicuous reservation to the treaty to preserve its rights.
- ✓ After a rule of custom has formed, any conduct contrary to the rule is a violation of international law. Interestingly, if violations continue they may give rise to a new rule of custom. It is strange that violating the law is a way of making new law, but this is the way customary law is. Customs, after all, are the socially-acceptable forms of behavior. When behaviors change, customs change as well.

Treaties and General Assembly Resolutions as Evidence of Customs

- ✓ **Treaties, of course, are binding in their own right on State parties to the treaty.** Cases may arise, however, when we want to apply the principles in the treaty to **States that are not party to the treaty or to situations not specifically contemplated by the treaty.** This is possible through customary law.
- ✓ **Customary law co-exists with treaty law.** First, **the treaty may restate an already existing international custom.** State parties to such a treaty make no additional commitments beyond what they already owe to all other States. **Second, the treaty may crystallize an emerging international custom.** That is, the treaty may be the final recognition of a custom that was previously just in the development stages. **In this case the treaty and custom become binding at the same time – the treaty for its signatories and the custom for every State in the world.** Finally, the treaty may be so well-respected that it gives rise to customary laws through subsequent practice. Here the principles in the treaty apply at first only to the State parties to the treaty. Through time a custom develops and the principles become binding on every State.
- ✓ **A treaty may be used as evidence of custom along with other things like domestic court decisions and policy documents. Sometimes, however, the treaty may be the *only* evidence of the custom. Is one treaty enough to support a rule of customary law that will apply to all States? The ICJ has responded that, yes, in certain situations one treaty may be enough to establish a custom.**

✓ UN General Assembly resolutions also are used as authoritative evidence of custom.

✓ What we should consider first is what type of evidence UN GA resolutions provides. The UN GA is composed of representatives from all UN Member States, and resolutions require at least a majority vote to pass. **Therefore, GA resolutions represent the opinion of a majority of States in the world.** Sometimes GA resolutions pass unanimously, and in this case GA resolutions represent the opinion of all States in the world. What is such evidence worth when trying to prove a customary law? It is tempting to analogize a GA resolution to a treaty and say that GA resolutions can be used as evidence of State practice or *opinio juris* for the purposes of establishing custom. In fact, this is how GA resolutions often are used, but there are serious problems with this. **Unlike treaties, General Assembly resolutions are not binding on States.** As stated in the UN Charter, “the General Assembly shall initiate studies and **make recommendations.**” Recommendations are advice, not law. What kind of State practice or *opinio juris* would advice be? This may depend on the language of the resolution. Nonetheless, some member States may vote to support a particular resolution **only because they know it is not binding.** It would be unfair, then, to use the resolution to establish a custom and make an international law “through the back door” so-to-speak. **Indeed, if a GA resolution alone were enough to prove a custom, the resolution would be the same as an independent source of**

international law. In other words, the GA would have a law-making power. This would run contrary to the expectations of UN member States who consider GA resolutions as non-binding, and it would also go against Article 38 of the ICJ statute that lists only four sources of international law and specifically does not include GA resolutions.

- ✓ GA resolutions have been useful for proving that certain human rights standards have become international custom. Some considerable questions may arise like how many resolutions are necessary to support a custom? Must the vote on the resolution be unanimous? Does a resolution show State practice or *Opinio juris*? Or can a resolution show both State practice and *Opinio juris*?

CHAPTER 5: INTERNATIONAL LAW OF TREATIES

- ✓ Treaties are more specific statements of international obligation than customs, and the consent of the parties to the treaty is clearly expressed. In modern times the number of treaties in force has

increased dramatically such that treaties often cover all the major issues that come up in a particular international dispute.

- ✓ A treaty is an agreement governed by international law. This definition is meant to distinguish between treaties on the one hand and contracts entered into by States on the other. States may enter into contracts, commercial or otherwise, that are governed by the national laws of one of the States involved.
- ✓ Generally, treaties are entered into by States, but international organizations have the capacity to enter into treaties as well. Treaties may be bilateral or multilateral. Bilateral treaties are treaties between two parties. Multilateral treaties are treaties among three or more parties. Usually the same legal rules apply to the different types of treaties.
- ✓ In international relations, treaties tend to serve one of two functions.
 - ★ Some treaties are like international “legislation” – they are open for all States to join and are intended to be universal and binding on all. Such treaties are “law-making.” Their purpose is to establish a set of universal rules to govern State conduct.
 - ★ Other treaties are more like “contracts.” These treaties are the means by which two or more States transact business.

- ✓ “*Pacta Sunt Servanda*”, meaning that treaty promises must be kept, is a foundational law for all treaties.
- ✓ There is a “treaty on treaties” or in other words a treaty that many States have joined that provides rules for the interpretation and application of treaties. This is the 1969 Vienna Convention on the Law of Treaties (VCLT). Although not all States in the world have joined this treaty, it has become customary law and thus is binding even on non-signatories.
- ✓ Treaties not in writing and treaties between States and international organizations are still binding in international law. It is just that the rules governing such treaties may be different from the rules in the VCLT. For instance, there is a separate set of rules in the 1986 Vienna Convention on the Law of Treaties between States and International Organization or between International Organizations that governs treaties to which an international organization is a party. Of course, the rules in the 1986 Vienna Convention are very similar to the rules in the VCLT.
- ✓ It is often the case that a State’s domestic laws will be important in understanding treaty obligations. Domestic laws are important in domestic courts, not in international courts. A State cannot use domestic law as a justification for failing to perform international treaty obligations. Treaties are binding as law at two levels, the domestic level as well as the international level. In domestic courts, domestic laws will color the interpretation and application of treaties. In fact, the FDRE

Constitution provides that Ethiopian government organs (presumably including domestic courts) will “observe international agreements which ensure respect to Ethiopia’s sovereignty and are not contrary to the interests of its peoples.” Seemingly, if an Ethiopian court determined that an otherwise valid treaty was “contrary to the interests of its peoples,” the court possibly could disregard the treaty altogether.

⚙️ Treaty Formation

- ✓ The basic process for entering into a treaty often is laid out in a particular State’s Constitution. In Ethiopia treaties are negotiated by the Executive and then ratified by the House of Peoples’ Representatives. For a point of contrast, in the U.S. the President negotiates the treaty and then must get the advice and consent of two-thirds of the senate to ratify the treaty. Once Ethiopia ratifies a treaty (and the treaty enters into force), Ethiopia is bound by that treaty.
- ✓ Negotiations over a potential treaty begin when representatives from the State parties meet. These representatives must be authorized to speak on behalf of the State or organization, or in other words they must have “full powers.” Heads of State, heads of government, and Foreign Ministers are assumed to have authority to speak on behalf of the State and will not be required to show full powers.

- ✓ Negotiations will proceed over the language in the treaty text. Some of the exchanges in these negotiations are recorded in a separate document known as the drafting history (also called “preparatory materials” or “*travaux préparatoires*”). The drafting history may be relevant later on if a dispute arises as to the interpretation of a particular provision. At the end of negotiations, the parties will be asked to adopt the full text of the treaty and authenticate it, possibly by signature. At this point the text of the treaty has reached its final form.
- ✓ Now the State parties must express their consent to be bound by the treaty. This is a separate step from adopting and authenticating the text of the treaty. Presumably a State representative may negotiate the details of the text and adopt and authenticate the text only to have the treaty rejected by the State government. Most States have internal processes for the approval of treaties, and representatives to the treaty negotiations must return home to get this approval before consent can be expressed to be bound by the treaty.
- ✓ Consent to be bound by a treaty may be expressed in many different ways. “The consent of a State to be bound by a treaty may be expressed **by signature, exchange of instruments constituting a treaty, ratification, acceptance, approval or accession**, or by any other means if so agreed.” (VCLT Art. 11) The most common method for expression of consent is ratification. **Ratification** is a declaration by some authorized official of the State that the State considers itself bound by the

treaty. This declaration is usually contained in an “instrument of ratification” (in other words, a writing) that is exchanged by the parties (in the case of bilateral treaties) or deposited somewhere for safe-keeping (usually at the UN for multilateral treaties). For most treaties, this is the end of the treaty formation process and the beginning of the State’s international obligations under the treaty. The treaty has “entered into force.”

- ✓ For multilateral treaties, it would be impractical to require all negotiating parties to consent before the treaty entered into force. Therefore, multilateral treaties usually provide that the treaty will enter into force upon the consent of a certain number of the parties.
- ✓ A party not present at the original negotiation may be allowed to join the treaty at a later time if the treaty so provides. This is called “**accession.**” The rules of accession typically will be laid out in the treaty itself.

⚙️ Interpretation of Treaty Terms

- ✓ Many of the ambiguities in the treaty text may be purposeful, because a clearer provision would have broken the deal and prevented the parties from reaching agreement. In other words, the parties may leave a controversial provision vague and put off arguing over it until after the treaty has come into force and an actual problem arises in regard to this provision.

- ✓ The ultimate goal of a court in interpreting treaty terms is to fulfill the intentions of the parties to the treaty. The parties are free actors and may enter into agreements that are substantively unfair to them. A court is not there to make the deal fair. Rather, the court is there to guarantee to each party its reasonable expectations under the agreement. Goals and concerns kept private by one party do not lead to reasonable expectations from that party. Thus, the intentions of the parties matter, but only those intentions that were expressed and made clear to the other parties to the treaty.
- ✓ Treaty interpretation must focus on what the parties to the treaty communicated to one another at the time of treaty formation.
- ✓ There are two basic theories for understanding communications among parties to a treaty (or contract for that matter).
 - ★ The **objective approach**: requires that we take the parties at their word and interpret treaty terms according to their ordinary meaning and as an ordinary person would understand them. Thus, if there is a question as to the meaning of a word in a treaty, the court should look up the word in the dictionary. According to the objective approach, it is not important what was in the minds of the drafters of the treaty. After all, other members of the treaty cannot see into the minds of the drafters. What is important is how the drafters manifested their thoughts in the words of the treaty.

★ The **subjective approach**: acknowledges that words only have such meaning as the parties gave them. It is possible that the parties to the treaty had some special understanding as to the meaning of terms that is not found in a dictionary. Thus, a court should look at anything that might indicate what the parties were thinking – their behavior, letters, and the drafting history of the treaty.

- ✓ The approach of the VCLT – and the approach that matters for us when we do treaty interpretation – is a combination of the objective and subjective approaches.
- ✓ The basic provision relating to interpretation is found in Article 31(1): “A treaty shall be interpreted in good faith in accordance with the ordinary meaning to be given to the terms of the treaty in their context and in the light of its object and purpose.” This is not a step by step analysis. Rather, when interpreting a treaty, applied at the same time. To start, the treaty must be interpreted in **good faith**. In other words, a party should not attempt to twist the language of the treaty in order to secure some selfish benefit for it that was not contemplated by the other parties. Good faith requires neutrality. “The purpose of the Treaty, and the intentions of the parties in concluding it,... should prevail over its literal application... The principle of good faith obliges the Parties to apply [the treaty] in a reasonable way...”

- ✓ As for the treaty terms, they must be given their “**ordinary meaning.**” The ordinary meaning is typically the one found in the dictionary. However, “[a] special meaning shall be given to a term if it is established that the parties so intended.” (VCLT Article 31(4).) This leaves room for the parties to introduce other evidence that would modify or change the dictionary definition of a term.
- ✓ The terms **must be interpreted “in their context.”** In other words, the treaty must be interpreted as a whole document, not in bits and pieces. The court should not look at specific terms in isolation from the rest of the treaty. Relevant context includes (1) other terms in the same provision, (2) other provisions in the treaty, (3) the preamble of the treaty, and (4) annexes to the treaty.
- ✓ Interpretation **should proceed in light of the treaty’s object and purpose.** If a literal understanding of some provision conflicts with the underlying purpose of the treaty, then the **underlying purpose must prevail.** In practice the object and purpose of the treaty may not be particularly helpful, as the object and purpose itself is explained by the words in the treaty and may be subject to different interpretations. **A good place to look for the object and purpose is in the preamble of the treaty.** In the end, resort to the object and purpose is more to confirm an interpretation based on text and context.
- ✓ The VCLT has rather specific rules in regard to the use of drafting history in treaty interpretation. Drafting history is the body of writings produced by the drafters of the treaty during the drafting

process. It may include, for example, discussions amongst parties to the treaty about how the treaty should be written, or an alternative proposal by one of the parties that was rejected and the reasons for rejection. Although the subjective approach always would allow drafting history to be considered when interpreting treaty terms, **the VCLT disfavors the drafting history and only allows it in certain circumstances.**

- ✓ There are some good reasons for being cautious when using drafting history. It is tempting to use the drafting history because **it often contains a detailed description of how the terms of the treaty were negotiated.** Many would take this record of negotiations as the best reflection of the parties' intent and best explanation for the parties' choice of language. In fact, though, State representatives say many things that they do not mean in the course of negotiations in order to secure a better bargaining position. **Thus, the language of bargaining may not reflect the parties' true intentions.** Moreover, not all parties to the treaty may be present at the negotiations. This is especially true for States who accede to a treaty later on and take the terms of the treaty at their face value.
- ✓ **Unlike the pure objective approach, the VCLT does not forbid the use of drafting history altogether. Clearly, though, drafting history is given a secondary role in treaty interpretation.** First, it may be used to **confirm the meaning of a word that has already been established by resort to text and**

context. But what if the drafting history somehow changes or contradicts the meaning of a provision established by text and context? This is not allowed. There are cases, however, when the meaning of a provision simply cannot be determined by text and context. In such cases the drafting history may be **used as an independent source of meaning.**

- ✓ As the VCLT explains, drafting history may be used on its own to determine the meaning of words when either
 - ★ Regular interpretation according to text and context “leaves the meaning ambiguous or obscure” or
 - ★ Regular interpretation “leads to a result which is manifestly absurd or unreasonable.”
- ✓ The method of treaty interpretation under the VCLT is known as “**progressive encirclement.**” There are not steps to be applied linearly but rather layers of meaning to be uncovered by circling deeper and deeper.
- ✓ Under VCLT Article 31(3), the subsequent activities of the parties affect the interpretation of treaty terms. Subsequent activities include subsequent *agreements* between the parties (later treaties, etc.), subsequent *practices* by the parties (how the parties apply the treaty), and rules of international law that develop subsequently.

- ✓ A further question may arise as to who has authority to interpret treaty terms. Although it is clearly advantageous to have a neutral third party like the ICJ determine rights and duties under a treaty, inevitably the State parties to the treaty will engage in some interpretation on their own in the domestic application of the treaty. The State legislature often will draft implementing legislation; domestic courts often will apply treaty terms to domestic disputes before them. Domestic application of treaty terms will not become an international issue until one of the State parties has a problem with the way in which another State party is applying treaty terms domestically and sues that State before an international tribunal for violation of the treaty.
- ✓ Unfortunately, international tribunals like the ICJ cannot interpret a treaty provision unless they have jurisdiction to do so. One of the most common ways that international tribunals establish their jurisdiction is through a jurisdictional clause contained in the treaty itself. The clause typically grants exclusive authority to a particular international body to interpret the treaty in case of a dispute. Jurisdictional clauses are of particularly great importance, then, in determining who will have the authority to interpret a treaty.
- ✓ Once jurisdiction is established, an international tribunal will interpret treaty terms in accordance with the VCLT. The Tribunal's interpretation will prevail over any interpretation of the treaty by domestic courts or other domestic government body.

Invalidity of Treaties and Treaty Termination

- ✓ International law does not allow treaties to end easily. There is a general policy of the international community in favor of stable interstate relations. The policy also favors stable treaty relations and continuation of treaty obligations. A party to a contract may unilaterally terminate the contract and pay damages to the other party for the unlawful breach. In a sense, the breaching party is paying to be free from the contract. In international law, a State cannot unilaterally terminate a treaty and simply pay damages for the unlawful breach. The treaty will continue in force even after payment of damages by the breaching party, unless of course the non-breaching party opts to terminate the treaty (i.e. unless the non-breaching party agrees with the breaching party to terminate).
- ✓ Even when termination is permissible, as for example by the language of the treaty itself or because of material breach by the other party, there are certain procedures that a State must follow before terminating. (VCLT Article 65.) First, the State that wants to terminate must notify the other parties to the treaty and give its reasons for termination. Then, if the other parties object, the State must attempt to resolve the disagreement through international dispute mechanisms like negotiation or arbitration or adjudication before an international court. Basically, unless the other parties consent, termination will require the intervention of an impartial third party like the ICJ to

determine the validity of the terminating party's claims and to determine whether termination is permissible.

✓ In rare cases a seemingly binding treaty is discovered to be invalid from the beginning. This is not a case of treaty termination per se but still may require that the State follow the procedures above for treaty termination – the State probably will have to resort to an impartial international body before effectively declaring the treaty invalid. In any case, invalidity of a treaty is difficult to prove and rarely argued. The various grounds for invalidity are not particularly important but are listed here

★ A treaty may be invalid because it is “ultra vires” or in other words because the representative acted beyond his authority and agreed to a treaty or a term in a treaty that was against the State's domestic law. The violation of domestic law must be “manifest” (i.e. obvious), and the domestic law that is violated must be one of “fundamental importance.” (See VCLT Article 46.)

★ A treaty may be invalid because of error, i.e. the treaty is based on some incorrect understanding of facts. For example, a treaty establishing a border may be invalid because it is based on an incorrect map.

★ A treaty may be invalid because of fraud. This happens when a State is induced to conclude a treaty based on misrepresentation by other parties.

- ★ A treaty may be invalid because of corruption, for example when a State's representative is bribed.
- ★ A treaty may be invalid because of coercion, for example when a State is threatened into signing a treaty.
- ★ Finally, a treaty may be invalid because it violates a peremptory norm (*jus cogens*). This was discussed earlier in the text.

✓ **When can a State terminate a treaty?** First, it is always possible to terminate the treaty if all the parties to the treaty agree to do so. Second, there may be provisions in the treaty itself that allow termination in certain situations. Or, the treaty may allow termination on application by one of the parties to some international body.

✓ In the **absence of agreement among the parties as to termination, the default rule is that termination is possible only in four situations. (VCLT Articles 60-62.)** These situations are

- ★ Material breach by the other party,

- ★ Impossibility of performance,

- ★ Fundamental change of circumstances such that it no longer makes sense to continue with the treaty, and

- ★ .A new rule of *jus cogens* that emerges some time after the treaty is already in force and that conflicts with the treaty.

- ✓ Whatever the grounds for termination, the terminating State will have to go through the procedures listed above and argue its grounds for termination before some neutral body.
- ✓ Impossibility of performance and fundamental change in circumstances are two grounds for termination that are often raised in conjunction with the same set of facts. Impossibility of performance results from “permanent disappearance or destruction of an object indispensable for the execution of the treaty.” (VCLT Article 61.)
- ✓ A fundamental change in circumstances does not make it impossible to perform on the treaty but rather makes it senseless to perform. Three requirements must be met in order to terminate based on fundamental change: (1) the change must not be foreseeable by the parties at the time of treaty formation, (2) the existence of the circumstances (that now have changed) must be an essential basis of the agreement, and (3) the change itself must be something so dramatic that it transforms treaty obligations.

Treaty Reservations

- ✓ A treaty reservation is a unilateral statement whereby a nation tries to exclude or modify the legal effect of a provision of a treaty while still joining the treaty. A State may want to ratify a treaty, but the State disagrees with one provision in the treaty. The State will make a reservation to that provision, so that the treaty is binding on the state, except for the one provision.
- ✓ Reservations usually are made to multilateral treaties, especially human rights treaties. There can be no reservations to bilateral treaties. An attempted “reservation” would be rather an invitation to the other side to renegotiate this part of the treaty.
- ✓ Reservations must be distinguished from “understandings” and “declarations.” Unlike reservations, understandings and declarations are interpretive statements that are not meant to change the treaty terms but rather clarify what that party understands the treaty to mean. Such statements are less controversial and have no effect on a particular party’s obligations under the treaty. State may make a reservation but call that reservation an “understanding.” It is of no concern to us what a State calls its reservations. What matters is whether the State has tried to change the legal effect of a particular treaty provision, in which case it has made a reservation.
- ✓ Historically, States did not make reservations to treaties. The old rule in international law was that all parties had to agree to all terms of the treaty. One party could have proposed an amendment to the treaty after the negotiations were concluded, but the other parties would have had to accept this

amendment in order for it to have legal effect. Reservations truly became a practice in international law in modern times with the proliferation of Human Rights treaties. This is not to say that reservations can only be made to Human Rights treaties. Rather, it is to show the historical development of reservations practice.

CHAPTER 6: STATE RESPONSIBILITY

- ✓ The laws of **state responsibility** are the principles governing when and how a state is held responsible for a breach of an international obligation.
- ✓ Rather than setting forth any particular obligations, the rules of state responsibility determine, in general, when an obligation has been breached and the legal consequences of that violation. In this way they are called "secondary" rules that address basic issues of responsibility and remedies available for breach of "primary" or substantive rules of international law, such as with respect to the use of armed force, rights and duties of states. Because of this generality, the rules can be studied independently of the primary rules of obligation.
- ✓ They establish:
 - ★ the conditions for an act to qualify as internationally wrongful;
 - ★ the circumstances under which actions of officials, private individuals and other entities may be attributed to the state; and

★ The consequences of liability.

Meaning of State Responsibility

- ✓ Traditionally, the term "state responsibility" referred only to state responsibility for injuries to aliens. It included not only "secondary" issues such as attribution and remedies, but also the primary rights and duties of states, for example the asserted international standard of treatment and the right of diplomatic protection. Early efforts by the League of Nations and private bodies to codify the rules of "state responsibility" reflected the traditional focus on responsibility for injuries to aliens. The League's 1930 Codification Conference in The Hague was able to reach an agreement only on "secondary" issues such as imputation, not on substantive rules regarding the treatment of aliens and their property. Attempts to codify and develop the rules of state responsibility have continued throughout the life of the United Nations.
- ✓ State responsibility is a fundamental principle of international law and it lies on the understanding that states are sovereign and equal. It provides that whenever one state commits an internationally unlawful act against another state, international responsibility is established between the two. This obligation gives rise to a requirement for reparation.

- ✓ Accordingly, the focus of this branch of international law is up on principles concerned with second-order issues. In other words, it is interested with the procedural and other consequences flowing from a breach of a substantive rule of international law. In fact, this has led to a number of issues concerning the relationship between the rules of state responsibility and those relating to other areas of international law.

The nature of State Responsibility

- ✓ The essential characteristics of responsibility hinges up on certain basic factors:
 - ★ First the existence of an international legal obligation in force as between two particular states;
 - ★ secondly, that there has occurred an act or omission which violates that obligation and which is imputable to the state responsible; and
 - ★ Finally, that loss or damage has resulted from the unlawful or omission.
- ✓ Article 1 of the International Law Commission's Articles on state responsibility reiterates the general rule, widely supported by practice, that every internationally wrongful act of a state entails responsibility.

Article 1

Responsibility of a State for its internationally wrongful acts

Every internationally wrongful act of a State entails the international responsibility of that State.

Similarly Article 2 provides that there is an **internationally wrongful act of a state when conduct consisting of an action or omission is attributable to the state** under international law and constitutes a breach of **an international obligation of the state**.

Article 2

Elements of an internationally wrongful act of a State

There is an internationally wrongful act of a State when conduct consisting of an action or omission:

- (a) Is attributable to the State under international law; and
- (b) Constitutes a breach of an international obligation of the State.

This principle has been affirmed in the case-law. It is international law that determines what constitutes an internationally unlawful act, irrespective of any provisions of municipal law. Article 12 stipulates that there is a breach of an international obligation when an act of that state is not in conformity with what is required of it by that obligation, regardless of its origin or character.

Article 12

Existence of a breach of an international obligation

There is a **breach of an international obligation by a State when an act of that State is not in conformity with what is required of it by that obligation**, regardless of its origin or character.

A breach that is of a continuing nature extends over the entire period during which the act continues and remains not in conformity with the international obligation in question, while a breach that consists of a composite act will also extend over the entire period during which the act or omission continues and remains not in conformity with the international obligation. **A state assisting another state to commit an internationally wrongful act will also be responsible if it so acted with knowledge of the circumstances and where it would be wrongful if committed by that state.**

The Question of Wrongfulness

- ✓ **There are contending theories as to whether responsibility of the state for unlawful acts or omissions is one of strict liability or whether it is necessary to show some fault or intention on the part of the officials concerned.**

- ✓ The principle of **objective responsibility (the so called ‘risk’ theory)** maintains that the liability of the state is strict. Once an unlawful act has taken place, which has caused injury and which has been committed by an agent of the state, that state will be responsible in international law to the state suffering the damage irrespective of good or bad faith.
- ✓ To be contrasted with this approach is the **subjective responsibility concept (the ‘fault’ theory)** which emphasizes that an element of international or negligent conduct on the part of the person concerned is necessary before his state can be rendered liable for any injury caused.

The relevant cases and academic opinions are divided on this question, although the majority tends towards the strict liability, **objective theory of responsibility**.

In the Neer claim in 1926, an American superintendent of a Mexican mine was shot. The USA, on behalf of his widow and daughter, claimed damages because of the careless manner in which the Mexican authorities pursued their investigations. The general claims commission dealing with the manner disallowed the claim, in applying the objective test.

In the Caire Claim, the French-Mexican claims commission had to consider the case of a French citizen shot by Mexican soldiers for failing to supply them with 5,000 Mexican dollars. Verzijl, the presiding commissioner, held that Mexico was responsible for the injury caused in accordance with the **objective responsibility doctrine** that is the responsibility for the acts of the officials or organs of a state, which may devolve upon **it even in the absence of any “fault” of its own.**

A leading case adopting the subjective approach is the Home Missionary society claim in 1920 between Britain and the United States. In this case, the imposition of a ‘hut tax’ in the protectorate of Sierra Leone triggered off a local uprising in which society property was damaged and missionaries killed. The tribunal dismissed the claim of the society (presented by the US) and noted that it was established in international law that no government was responsible for the acts of rebels where it itself was guilty of no breach of good faith or negligence in suppressing the revolt. It should, therefore, be noted that the view expressed in this case is concerned with a specific area of the law, **namely the question of state responsibility for the acts of rebels. Whether one can analogize from this generally is open to doubt.**

In the Corfu Channel case, the International Court appeared to lean towards the fault theory by saying that:

It can not be concluded from the mere fact of the control exercised by a state over its territory and waters that state necessarily knew, or ought to have known, of any unlawful act perpetrated therein, nor yet that it necessarily knew, or should have known, the authors. This fact, by itself and apart from other circumstances, neither involves prima facie responsibility nor shifts the burden of proof.

On the other hand, the court emphasized that the fact of exclusive territorial control had a bearing upon the methods of proof available to establish the knowledge of that state as to the events in question. Because of the difficulties of presenting direct proof of facts giving rise to responsibility, the victim state should be allowed a more liberal recourse to inferences of fact and circumstantial evidence.

How ever, it must be pointed out that the court was concerned with Albania's knowledge of the laying of mines, and the question of prima facie responsibility for any unlawful act committed within the territory of the state concerned, irrespective of attribution, raises different issues. It cannot be taken as proof of the acceptance of the fault theory. It may be concluded that doctrine and practice support the

objective theory and that this is right, particularly in view of the proliferation of state organs and agencies. The commentary to the ILC Articles emphasized that the Articles did not take a definitive position on this controversy, but noted that standards as to objective or subjective approaches, fault, negligence or want of due diligence would vary from one context to another depending up on the terms of the primary obligation in question.

According to the *Draft Articles*, an internationally wrongful act must:

- be attributable to the state under international law; and
- Constitute a breach of an international obligation of the state.

"Breach of an international obligation" is defined as "an act ... not in conformity with what is required ... by that obligation." Furthermore, the state cannot avoid responsibility by declaring something legal under its own domestic law.

Some older cases and commentaries discuss whether state responsibility is based on notions of fault or strict liability. It may be said that states are more "strictly liable" for the actions of their officials than for the actions of private individuals. In the latter case, it may be necessary to prove some "failure to control" the private individuals (i.e. "fault") before the state itself is held responsible. The articles

leave it to the primary rules of obligation to determine whether the wrongfulness of an act depends on fault, intention, lack of diligence, or the like.

Immutability/Attribution

- ✓ Before a state can be held responsible for any action, it is necessary to prove a causal connection between the injury and an official act or omission attributable to the state alleged to be in breach of its obligations.
- ✓ The state is responsible for all actions of its officials and organs, even if the organ or official is formally independent and even if the organ or official is acting *ultra vires*. A state may be held responsible for actions of "private" individuals that are, in fact, controlled by the state.

Article 5: Conduct of persons or entities exercising elements of governmental authority: The conduct of a person or entity which is not an organ of the State under article 4 but which is empowered by the law of that State to exercise elements of the governmental authority shall be considered an act of the State under international law, provided the person or entity is acting in that capacity in the particular instance.

Article 7: Excess of authority or contravention of instructions: The conduct of an organ of a State or of a person or entity empowered to exercise elements of the governmental authority shall be

considered an act of the State under international law if the organ, person or entity acts in that capacity, even if it exceeds its authority or contravenes instructions.

Article 8: Conduct directed or controlled by a State: The conduct of a person or group of persons shall be considered an act of a State under international law if the person or group of persons is in fact acting on the instructions of, or under the direction or control of that State in carrying out the conduct. Where there is a breakdown of normal governmental authority and control, such as in so-called "failed states", the actions of those acting as the "government" in a de facto sense will be acts of the state. The acts of an "insurrectional or other movement that becomes the new government of an existing state or succeeds in establishing a new state" can also be attributed to the state. This is also the case where a state acknowledges and adopts the conduct of private persons as its own.

Article 9: Conduct carried out in the absence or default of the official authorities: The conduct of a person or group of persons shall be considered an act of a State under international law if the person or group of persons is in fact exercising elements of the governmental authority in the absence or default of the official authorities and in circumstances such as to call for the exercise of those elements of authority.

Article 10: Conduct of an insurrectional or other movement:

1. The conduct of an insurrectional movement which becomes the new Government of a State shall be considered an act of that State under international law.
2. The conduct of a movement, insurrectional or other, which succeeds in establishing a new State in part of the territory of a pre-existing State or in a territory under its administration, shall be considered an act of the new State under international law.
3. This article is without prejudice to the attribution to a State of any conduct, however related to that of the movement concerned, which is to be considered an act of that State by virtue of articles 4 to 9.

Article 11: Conduct acknowledged and adopted by a State as its own: Conduct which is not attributable to a State under the preceding articles shall nevertheless be considered an act of that State under international law if and to the extent that the State acknowledges and adopts the conduct in question as its own.

- ✓ Imposing upon the state absolute liability wherever an official is involved encourages that state to exercise greater control over its various departments and representatives. It also stimulates moves towards complying with objective standards of conduct in international relations.

- ✓ State responsibility covers many fields. It includes unlawful acts or omissions directly committed by the state and directly affecting other states: for instance, the breach of a treaty, the violation of the territory of another state, or damage to state property.

State Control and Responsibility

- ✓ Article 8 of Draft Article of the International Law Commission provides: *The conduct of a person or group of persons shall be considered an act of a State under international law if the person or group of persons is in fact acting on the instructions of, or under the direction or control of that State in carrying out the conduct.*
- ✓ The fact that *the conduct of a person or group of persons shall be considered an act of a State under international law* is not debatable, but difficulties have arisen in seeking to define the necessary direction or control required for the second proposition, “...if the person or group of persons is in fact acting on the instructions of, or under the direction or control of that State in carrying out the conduct” of the above article of The Commission.
- ✓ Article 9 of the ILC Articles provides that the conduct of a person or group of persons shall be considered an act of a State under international law if the person or group of persons is in fact

exercising elements of the governmental authority in the absence or default of the official authorities and in circumstances such as to call for the exercise of those elements of authority.

- ✓ Article 10 of the ICL articles provides that where an insurrectional movement is successful either in becoming the new government of a state or in establishing a new state in part of the territory of the pre-existing state, it will be held responsible for its activities prior to its assumption of authority.
- ✓ Where a state subsequently acknowledges and adopts conduct as its own, then it will be considered as an act of state under international law entailing responsibility, even though such conduct was not attributable to the state before hand.

Consequences of Breach and Reparation

✓ The breach of an international obligation entails two types of legal consequences.

- ★ Firstly, it creates new obligations for the breaching state, principally, duties of cessation and non-repetition (Article 30), and a duty to make full reparation (Article 31). Article 33(1) characterizes these secondary obligations as being owed to other states or to the international community as a whole. Articles indirectly acknowledge in a savings clause also that states may owe secondary obligations to non-state actors such as individuals or international organizations.

★ Second, the articles create new rights for injured states, principally, the right to invoke responsibility (Articles 42 and 48) and a limited right to take countermeasures (Articles 49-53).

These rights, however, are heavily state-centered and do not deal with how state responsibility is to be implemented if the holder of the right is an individual or an organization. The principal element of progressive development in this area is Article 48, which provides that certain violations of international obligations can affect the international community as a whole such that state responsibility can be invoked by states on behalf of the larger community.

✓ If illegal actions are continuing, the state has a duty to cease. [Art. 30] The state also has duties to make reparation, which could involve restitution, compensation, or satisfaction. Remedies will be dependent on the particular forum, such as the United Nations, International Court of Justice, World Trade Organization, International Tribunal for the Law of the Sea, International Criminal Court.

CHAPTER 7: WAR AND THE PROHIBITION ON THE THREAT OR USE OF FORCE

✓ The rule governing **resort to force** form a central element within international law and together with other principles such as **territorial sovereignty** and **the independence and equality of states provide the frame work for international order**. While domestic systems have, on the whole, managed to prescribe a virtual monopoly on the use of force for the governmental institutions, reinforcing the hierarchical structure of authority and control international law is in a different situation. It must seek to minimize and regulate the resort to force by states, without itself being able to enforce its will. **Reliance has to be placed on consent, consensus, reciprocity and good faith**. The role and manifestation of force in the world community is, of course, dependent upon political and other non-legal factors as well as upon the current state of the law, **but the law must seek to provide mechanisms to restrain and punish the resort to violence**. This chapter addresses the principles under the use of force by states. Hence, it will assess the emergence of use of force from just War to the United Nations, the principles as to use of Force under the United Nations, Self defense and Collective Self defense under international Law....

History of use of force: from the 'Just War' to the United Nations

✓ Christianization of the Roman Empire and the ensuring abandonment by Christians of pacificism give rise to the **doctrine of just war**. In those **days the doctrine was force could be used provided**

it complied with the Divine Will. The concept of the just war embodied of Greek and Roman philosophy and was employed as the ultimate sanction for the maintenance of an ordered society.

✓ St Augustine (354-430) defined the just war in terms of **avenging of injuries suffered where the guilty party has refused to make reparation. War was to be embarked upon to punish wrongs and restore the peaceful status quo but no further.**

✓ **Aggression was unjust and the recourse to violence had to be strictly controlled.**

✓ St Thomas Aquinas in the thirteenth Century took the definition of the just war a stage further by declaring that it was the **subjective guilt of the wrongdoer that had to be punished rather than the objective wrong activity.** He wrote that war could be provided it was waged by the sovereign authority, it was **accompanied by a just cause (i.e. the punishment of wrongdoers) and it was supported by the right intentions on the part of the belligerents.**

✓ The just war was also implied in immunity of innocent persons from direct attack and the proportionate use of force to overcome the opposition.

✓ Gradually it began to be accepted that a certain degree of right might exist on both sides, although the situation was confused by references to subjective and objective justice. Grotius, in his systematizing fashion, tried to exclude ideological considerations as the basis of a just war, in the light of the destructive seventeenth-century religious conflicts, and attempted to redefine the just

war in terms of self-defense, the protection of property and the punishment for wrongs suffered by the citizens of the particular state.

- ✓ But with positive and the definitive establishment of the European balance of power system after the peace of Westphalia, 1648, the concept of the just war disappeared from international law as such. States were sovereign and equal, and therefore no one state could presume to judge whether another's causes was just or not. States were bound to honor agreements and respect the independence and integrity of other countries, and had to try and resolve differences by peaceful methods.
- ✓ The doctrine of the just war arose with the increasing power of Christianity and declined with the outbreak of the inter-Christian religious wars and the establishment of an order of secular sovereign states. Although war became a legal state of affairs which permitted force to be used and in which a series of regulatory conditions were recognized, there existed various other methods of employing force that fell short of war. Reprisals and pacific blockades were example of the use of force as 'hostile measures short of war.'
- ✓ The First World War marked the end of the balance of power system and raised afresh the question of unjust war. It also resulted in efforts to rebuild international affairs upon the basis of a general

international institution which would oversee the conduct of the world community to ensure that aggression could not happen again.

- ✓ The creation of the League of Nations reflected a completely different attitude to the problems of force in the international order. The Covenant of the League declared that members should submit disputes likely to lead to a rupture to arbitration or judicial settlement or inquiry by the council of the League. In no circumstances were members to resort to war until three months after the arbitral award or judicial decision or report by the council.
- ✓ The League system did not, it should be noted, prohibit war or the use of force, but it did set up a procedure designed to restrict it to tolerable levels.

The UN Charter

- ✓ Article 2(4) of the Charter declares that: All members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any state, or in any other manner inconsistent with the purposes of the United Nations.
- ✓ This provision is regarded now as a principle of customary international law and as such is binding upon all states in the world community. The reference to 'force' rather than war is beneficial and thus covers situations in which violence is employed which fall short of the technical requirements of the state of war.

✓ Article 2(4) was elaborated as a principle of international law in the 1970 Declaration on Principles of International law and analyzed systematically:

★ First, wars of aggression constitute a crime against peace for which there is responsibility under international law;

★ Secondly, states must not threaten or use force to violate existing international frontiers (including demarcation or armistice lines) or to solve international disputes;

★ Thirdly, states are under a duty to refrain from acts of reprisal involving the use of force;

★ Fourthly, states must not use force to deprive peoples of their right to self-determination and independence;

★ And fifthly, states must refrain from organizing, instigating, assisting or participating in acts of civil strife or terrorist acts in another state and must not encourage the formation of armed bands for incursion into another state's territory.

✓ Although the Declaration is not of itself a binding legal document, it is important as an interpretation of the relevant Charter provisions.

✓ Important exceptions to article 2(4) exist in relation to collective measures taken by the United Nations and with regard to the right of self-defense.

- ✓ Whether such an exception exists with regard to humanitarian intervention is the subject of some controversy.
- ✓ Article 2(6) of the Charter provides that the UN “shall ensure that states which are not members of the United Nations act in accordance with these principles so far as may be necessary for the maintenance of international peace and security”. In fact, many of the resolutions adopted by the UN are addressed simply to ‘all states.’

Meaning of Force

- ✓ One point that was considered in the past and is now being reconsidered is whether the term ‘force’ in article 2(4) includes not only armed force but, for example, economic force. Does the imposition of boycotts or embargoes against particular states or groups of states come within article 2(4)? Although that provision is not modified in any way, the Preamble to the Charter does refer to the need to ensure that ‘armed force’ should not be used except in the common interest, while article 51, dealing with the right to self-defense, specifically refers to armed force, although that is not of itself conclusive as to the permissibility of other forms of coercion.
- ✓ The 1970 Declaration on Principles of international Law recalled the ‘duty of states to refrain ... from military, political, economic or any other form of coercion aimed against the political independence or territorial integrity of any state’ and the international Covenants on Human Rights

adopted in 1966 emphasized the right of all peoples freely to pursue their economic, social and cultural development. This approach was underlined in the Charter of economic rights and duties of states, approved by the General Assembly in 1974, which particularly specified that ‘no state may use or encourage the use of economic, political or any other type of measures to coerce another state in order to obtain from it the subordination of the exercise of its sovereign rights’.

✓ It is to be noted that article 2(4) covers the “threats of force” as well as “use of force”. This issue was addressed by the international court in its Advisory Opinion to the General Assembly on the legality of the threat or use of Nuclear Weapons. The court stated that a ‘signaled intention to use force if certain events occur’ could constitute a threat under article 2(4) where the envisaged use of force would itself be unlawful. Example given included threats to secure territory from another state or causing it to ‘follow or not follow certain political or economic paths.’ The court appeared to accept that *the mere possession of nuclear weapons did not of it self constitute a threat*. However, noting that the policy of nuclear deterrence functioned on the basis of the credibility of the possibility of resorting to those weapons in certain circumstances, it was stated that whether this amounted to a threat would depend upon whether the particular use of force envisaged would be directed against the territorial integrity or political independence of a state or against the purpose of the UN. If the projected use of weapons was intended as a means of defense and there would be a

consequential and necessary breach of the principles of necessity and proportionality, this would suggest that a threat contrary to article 2(4) existed.

The Phrase ‘Against the territorial integrity or political independence of any state’

- ✓ Article 2(4) of the charter prohibits the use of force ‘against the territorial integrity or political independence of any state, or in any other manner in consistent with the purposes of the United Nations.’ There is a debate as to whether these words should be interpreted restrictively, so as to permit force that would not contravene the clause, or as reinforcing the primary prohibition, but the weight of opinion probably suggests the latter position.
- ✓ The 1965 Declaration on the Inadmissibility of Intervention in the Domestic Affairs of States emphasized that: No state has the right to intervene, directly or indirectly, for any reason what so ever, in the internal or external affairs of any other state. Consequently, armed intervention and all other forms of interference or attempted threats against the personality of the state or against its political economic and cultural elements, are condemned.
- ✓ This was reaffirmed in the 1970 Declaration on Principles in international Law, with the *proviso* that not only were such manifestations condemned, but they were held to be in violation of international law.

Categories of Force

✓ Various measures of self-help ranging from economic retaliation to the use of violence pursuant to the right of self-defense have historically been used. Since the establishment of the charter regime there are basically three categories of compulsion open to states under international law.

✓ These are

✓ retorsion,

✓ reprisal and

✓ self-defense.

✱ **Retorison:** adoption by one state of an unfriendly and harmful act, which is nevertheless lawful, as a method of retaliation against the injurious legal activities of another state. Examples include the severance of diplomatic relations and the expulsion or restrictive control of aliens, as well as various economic and travel restrictions. Retorison is a legitimate method of showing displeasure in a way that hurts the other state while remaining within the bound of legality.

✱ **Reprisals:** acts which are in themselves illegal and have been adopted by one state in retaliation for the commission of an earlier illegal act by another state. They are thus distinguishable from acts of retorsion, which are in themselves law ful acts

The right of self-defense

The traditional definition of the right of self-defense in customary international law occurs in the Caroline Case (see Annexes). This dispute revolved around an incident in 1837 in which British subjects seized and destroyed a vessel in an American port. This had taken place because the Caroline had been supplying groups of American nationals, who had been conducting raids into Canadian territory. In the correspondence with the British authorities which followed the incident, the American Secretary of state laid down the essentials of self-defense. There had to exist ‘a necessity of self-defense, instant, overwhelming, leaving no choice of means, and no moment for deliberation.’ Not only were such conditions necessary before self-defense became legitimate, but the action taken in pursuance of it must not be unreasonable or excessive, ‘such act, justified by the necessity of self-defense, must be limited by that necessity, and kept clearly within it.’ These principles were accepted by the British government at that time and are accepted as part of customary international law.

Article 51 Provides:

Nothing in the present Charter shall impair the inherent right of individual or collective self-defense if an armed attack occurs against a member of the United Nations, until the Security Council has taken the measure necessary to maintain international peace and security. Measures taken by members in the exercise of this right of self-defense shall be immediately reported to the security council and shall not in any way affect the authority and responsibility of the security council under the present Charter to take at any time such action as it deems necessary in order to maintain or restore international peace and security.

There is extensive controversy as to the precise extent of the right of self-defense in light of Article 51. On the one hand, it is argued that article 51 in conjunction with article 2(4) now specifies the scope and limitations of the doctrine of use of force. In other words, self-defense can only be resorted to 'if an armed attack occurs' and in no other circumstances. On the other hand, there are writers who maintain that the opening phrase in Article 51 specifying that 'nothing in the present Charter shall impair the inherent right of...self-defense' means that there does exist in customary international law a right of self-defense over and above the specific provisions of article 51, which refer only to the situation where an armed attack has occurred. A number of academics and some states have regarded Article 51 as merely elaborating one kind of self-defense in the context of the primary responsibility of

the Security Council for international peace and the enforcement techniques available under the Charter.

The International Court of Justice in the Nicaragua case (see Annexes) has however, clearly established that the right of self-defense exists as an inherent right under customary international law as well as under the UN Charter. It was stressed that:

Article 51 of the Charter is only meaningful on the basis that there is a ‘natural’ or ‘inherent’ right of self-defense and it is hard to see how this can be other than of a customary nature, even if its present content has been confirmed and influenced by the Charter... it cannot, therefore, be held that Article 51 is a provision which include and supervenes’ customary international law.

Accordingly, customary law continued to exist alongside treaty law (i.e. the UN Charter) in this field. There was not an exact overlap and the rules did not have the same content. The Court also discussed the notion of an ‘armed attack’ and noted that this included not only action by regular armed forces across an international border, but additionally the sending by or on behalf of a state of armed bands or groups which carry out acts of armed force of such gravity as to amount to an actual armed attack conducted by regular armed forces or its substantial involvement there in.

The court did not accept, however, that this concept extended to assistance to rebels in the form of the provision of weapons or logistical or other support, although this form of assistance could constitute a threat or use of force, or amount to intervention in the internal or external affairs of the state. This lays open the problem that in certain circumstances a state under attack from groups supported by another state may not be able under this definition to respond militarily if the support given by that other state does not reach the threshold laid down. Judge Jennings referred to this issue in his dissenting opinion, noting that, 'it seems dangerous to define unnecessarily strictly the conditions for lawful self-defense, so as to leave a large area where both a forcible response to force is forbidden, and yet the United Nations employment of force, which was intended to fill that gap, is absent.

Another aspect of the problem as to what constitutes an armed attack is the difficulty of categorizing particular uses of force for these purposes. For example, would an attack upon an embassy or diplomats abroad constitute an armed attack legitimating action in self-defense? On 7 August 1998, the US Embassies in Kenya and Tanzania were bombed, causing the loss of over 250 lives and appreciable damage to property. On 20 August, the US launched a series of cruise missile attacks upon installations in Afghanistan and Sudan associated with the organization of Bin Laden deemed responsible for the attacks. In so doing, the US declared itself acting in accordance with Article 51 of the Charter and in exercise of its right of self-defense. Another argument that has been made is that,

with regard to actions against aircraft, an armed attack begins at the moment that the radar guiding the anti-aircraft missile has 'locked on'.

Terrorism

- ✓ Is the systematic use of terror especially as a means of coercion." There is no internationally agreed definition of terrorism.
- ✓ Most common definitions of terrorism include only those acts which are intended to create fear (terror), are perpetrated for an ideological goal (as opposed to a lone attack), and deliberately target or disregard the safety of non-combatants. Some definitions also include acts of unlawful violence and war.
- ✓ Most government definitions outline the following key criteria: target, objective, motive, perpetrator, and legitimacy or legality of the act. Terrorism is also often recognizable by a following statement from the perpetrators.
- ✳ **Violence** – According to Walter Laqueur of the Center for Strategic and International Studies, "the only general characteristic of terrorism generally agreed upon is that terrorism involves violence and the threat of violence." However, the criterion of violence alone does not produce a useful

definition, as it includes many acts not usually considered terrorism: war, riot, organized crime, or even a simple assault.

- ✳ **Psychological impact and fear** – The attack was carried out in such a way as to maximize the severity and length of the psychological impact. Each act of terrorism is a “performance,” devised to have an impact on many large audiences. Terrorists also attack national symbols to show their power and to shake the foundation of the country or society they are opposed to. This may negatively affect a government's legitimacy, while increasing the legitimacy of the given terrorist organization and/or ideology behind a terrorist act.
- ✳ **Perpetrated for a political goal** – Something all terrorist attacks have in common is their perpetration for a political purpose. Terrorism is a political tactic, not unlike letter writing or protesting, that is used by activists when they believe no other means will effect the kind of change they desire. The change is desired so badly that **failure is seen as a worse outcome than the deaths of civilians**. This is often where the interrelationship between terrorism and religion occurs.
- ✳ **Deliberate targeting of non-combatants** – It is commonly held that the distinctive nature of terrorism lies in its intentional and specific selection of civilians as direct targets. Specifically, the criminal intent is shown when babies, children, mothers, and the elderly are murdered, or injured, and put in harm's way.

✳ **Disguise** – Terrorists almost invariably pretend to be non-combatants, hide among non-combatants, fight from in the midst of non-combatants, and when they can, strive to mislead and provoke the government soldiers into attacking the wrong people, that the government may be blamed for it. When an enemy is identifiable as a combatant, the word terrorism is rarely used.

✳ **Unlawfulness or illegitimacy** – Some official (notably government) definitions of terrorism add a criterion of illegitimacy or unlawfulness to distinguish between actions authorized by a government (and thus "lawful") and those of other actors, including individuals and small groups. Using this criterion, actions that would otherwise qualify as terrorism would not be considered terrorism if they were government sanctioned. For example, firebombing a city, which is designed to affect civilian support for a cause, would not be considered terrorism if it were authorized by a "legitimate" government.

✓ The question has been raised whether the right of self-defense in response to terrorism and, in particular, whether terrorist acts would constitute 'armed attack' within the meaning of the Charter or customary law. The day after the September 11, 2001 attacks upon the World Trade Center in New York, the Security Council adopted Resolution 1368 in which it specifically referred to 'the inherent right of individual or collective self-defense in accordance with the Charter'. Resolution 1373 (2001) reaffirmed this and, acting under Chapter VII, adopted a series of binding decisions,

including a provision that all states shall ‘take the necessary steps to prevent the commission of terrorist acts.’

Anticipatory or pre-emptive self-defense

- ✓ A further issue is whether a right to anticipatory or pre-emptive self-defense exists. This would appear unlikely if one adopted the notion that self-defense is restricted to responses to actual armed attacks.
- ✓ The concept of anticipatory self-defense is of particular relevant in light of modern weaponry that can launch an attack with tremendous speed, which may allow the target state little time to react to the armed assault before its successful conclusion, particularly if that state is geographically small. States have employed pre-emptive strikes in self-defense. Today, war instruments are so sophisticated that they can destroy the target in a few moments.
- ✓ The trouble, of course, with the concept of anticipatory self-defense is that it involves fine calculations of the various moves by the other party. A preemptive strike embarked upon too early might constitute an aggression. There is a difficult line to be drawn. The problem is that the nature of the international system is such as to leave such determinations to be made by the states themselves, and in the absence a modification of this.

✓ States generally are not at ease with the concept of anticipatory self-defense, however, and one possibility would be to concentrate upon the notion of 'armed attack' so that this may be interpreted in a relatively flexible manner. One suggestion has been to distinguish anticipatory self-defense, where an armed attack is imminent and unavoidable so that the evidential problems and temptations of the former concept are avoided without dooming threatened states to making the choice between violating international law and suffering the actual assault. According to this approach, self-defense is legitimate both under customary law and under Article 51 of the Charter where an armed attack is imminent. It would then be a question of evidence as to whether that was an accurate assessment of the situation in the light of the information available at the relevant time. This would be rather easier to demonstrate than the looser concept of anticipatory self-defense and it has the merit of being consistent with the view that the right to self-defense in customary law exists as expounded in the Caroline case. In any event, much will depend upon the characterization of the threat and the nature of the response, for this has to be proportionate.

✓ The concepts of necessity and proportionality are at the heart of self-defense in international law. the Court in the Nicaragua case stated that there was a ' specific rule where by self-defense would warrant only measures which are proportional to the armed attack and necessary

to respond to it, a rule well established in customary international law.’ And in the Advisory Opinion it gave to the General Assembly on the legality of the threat or use of Nuclear Weapons it was emphasized that ‘ the submission of the exercise of the right of self-defense to the conditions of necessity and proportionality is a rule of customary international law. But what will be necessary and proportionate will depend on the circumstances of the case. The necessity criterion raises important evidential as well as substantive issues. It is essential to demonstrate that, as a reasonable conclusion on the basis of facts reasonably known at the time, the armed attack that has occurred or is reasonably believed to be imminent requires the response that is proposed.

- ✓ Proportionality as a criterion of self-defense may also require consideration of the type of weaponry to be used, an investigation that necessitates an analysis of the principles of international humanitarian law.

Collective Security

- ✓ According to Inis Claude's Article "Collective Security as an Approach to Peace", is seen as a compromise between the concept of world government and a nation-state based balance of power system, where the latter is seen as destructive or not a good enough safeguard for peace, and the

first is deemed unaccomplishable at the present time. **And while collective security is possible, several prerequisites have to be met for it to work.**

Basic principles

- ✱ **First:** almost every state, especially all major states, has to be in the collective security arrangement and committed to it for it to work. The League of Nations faced major problems with this given that the United States, a leading international power, did not join nor give its support to the organization. Similarly, when Italy invaded Ethiopia, Britain's and France's governments were more committed to blocking the rise of Germany, and hence did not seriously chide Mussolini, who they saw as a potential ally against Hitler in 1935.
- ✱ **Second:** no one state can block the decision making process. This was a major issue with the League of Nations, as it gave every state veto power, as well as with the UN, which gives it to 5 powerful nations. Should vetoes be allowed, the collective security arrangement will be greatly weakened as one country can subvert a democratic decision.
- ✱ **Third:** for sanctions to work, the international economy has to be sufficiently interdependent such that sanctions harm the intended country enough, but do not harm the countries doing the sanctioning. And for sanctions to work, universality of their application is especially important for them to have an effect.

- ✱ The fourth: for countries to trust collective security, they have to know it works well enough to safeguard their security. But at the same time, unless countries trust it, it's less likely to work. And while it is possible for collective security to start off with a small number of states and gradually have more adopt the idea, the first three issues need to be addressed in the first place, especially the second with regards to the UN's allocation of veto power and permanent seats.
- ✓ The lines between what is considered "collective defense" and "collective security" have been blurred. The concept of "collective security" forwarded by men such as Michael Joseph Savage, Martin Wight, Immanuel Kant, and Woodrow Wilson, are deemed to apply interests in security in a broad manner, to "avoid grouping powers into opposing camps, and refusing to draw dividing lines that would leave anyone out." Tenets of collective security continue to be behind many famous current and historical military alliances, most notably NATO. The term "collective security" has also been cited as a principle of the United Nations, and the League of Nations before that. By employing a system of collective security, the UN hopes to dissuade any member state from acting in a manner likely to threaten peace, thereby avoiding any conflict.

Collective Security in the League of Nations

- ✓ Another example of the failure of the League of Nation's collective security is the Manchurian Crisis, when Japan occupied part of China (who was a League member). After the invasion, members of the League passed a resolution calling for Japan to withdraw or face severe penalties. Given that every nation on the League of Nations council had veto power, Japan promptly vetoed the resolution, severely limiting the LN's ability respond. After two years of deliberation, the League passed a resolution condemning the invasion without committing the League's members to any action against it. The Japanese replied by quitting the League of Nations.
- ✓ A similar process occurred in 1935, when Italy invaded Ethiopia. Sanctions were passed, but Italy would have vetoed any stronger resolution. Additionally, Britain and France sought to court Italy's government as a potential deterrent to Hitler, given that Mussolini was not in what would become the Axis alliance of WWII. Thus, neither enforced any serious sanctions against the Italian government. Additionally, in this case and with the Japanese invasion of Manchuria, the absence of the USA from the League of Nations deprived the LN of another major power that could have used economic leverage against either of the aggressor states. Inaction by the League subjected it to criticisms that it was weak and concerned more with European issues (most leading members were European), and did not deter Hitler from his plans to dominate Europe.

✓ The most active and articulate exponent of collective security during the immediate pre-war years was the Soviet foreign minister Maxim Litvinov, but after the Munich Agreement in September 1938 and Western passivity in the face of German occupation of the remainder of Czechoslovakia in March 1939 it was shown that the Western Powers were not prepared to engage in collective security against aggression by the Axis Powers together with the Soviet Union, Soviet foreign policy was revised and Litvinov was replaced as foreign minister in early May 1939, in order to facilitate the negotiations that led to the Molotov-Ribbentrop Pact with Germany, signed by Litvinov's successor, Vyacheslav Molotov, on August 23 of that year. The war in Europe broke out a week later, with the German invasion of Poland on September 1.

Conclusion

The role of the UN and collective security in general is evolving given the rise of internal state conflicts since the end of WWII, there have been 111 military conflicts world wide, but only 9 of which have involved two or more states going to war with one another. The remainder has either been internal civil wars or civil wars where other nations intervened in some manner. This means that collective security may have to evolve towards providing a means to ensure stability and a fair international resolution to those internal conflicts. Whether this will involve more powerful

peacekeeping forces or a larger role for the UN diplomatically will likely be judged from a case to case basis.

International Law and the Preemptive Use of Force against Iraq

By: David M. Ackerman

Preemptive Military Attacks under Customary International Law

- ✓ Until recent decades customary international law deemed the right to use force and even to go to war to be an essential attribute of every state. As one scholar summarized: It always lies within the power of a State to endeavor to obtain redress for wrongs, or to gain political or other advantages over another, not merely by the employment of force, but also by direct recourse to war. Within that framework customary international law also consistently recognized self defense as a legitimate basis for the use of force: An act of self-defense is that form of self-protection which is directed against an aggressor or contemplated aggressor. No act can be so described which is not occasioned by attack or fear of attack. When acts of self-preservation on the part of a State are strictly acts of self defense, they are permitted by the law of nations, and are justified on principle, even though they may conflict with the ... rights of other states.

- ✓ Moreover, the recognized right of a state to use force for purposes of self-defense traditionally included the preemptive use of force, *i.e.*, the use of force in anticipation of an attack. Hugo Grotius, the father of international law, stated in the seventeenth century that “it be lawful to kill him who is preparing to kill.” Emmerich de Vattel a century later similarly asserted: The safest plan is to prevent evil where that is possible. A Nation has the right to resist the injury another seeks to inflict upon it, and to use force ... against the aggressor. It may even anticipate the other’s design, being careful, however, not to act upon vague and doubtful suspicions, lest it should run the risk of becoming itself the aggressor. The classic formulation of the right of preemptive attack was given by Secretary of State Daniel Webster in connection with the famous *Caroline* incident. In 1837 British troops under the cover of night attacked and sank an American ship, the *Caroline*, in U.S. waters because the ship was being used to provide supplies to insurrectionists against British rule in Canada headquartered on an island on the Canadian side of the Niagara River. The U.S. immediately protested this “extraordinary outrage” and demanded an apology and reparations. The dispute dragged on for several years before the British conceded that they ought to have immediately offered “some explanation and apology.”
- ✓ But in the course of the diplomatic exchanges Secretary of State Daniel Webster articulated the two conditions essential to the legitimacy of the preemptive use of force under customary

international law. In one note he asserted that an intrusion into the territory of another state can be justified as an act of self-defense only in those “cases in which the necessity of that self-defense is instant, overwhelming, and **leaving no choice of means and no moment for deliberation**.” In another note he asserted that **the force used in such circumstances has to be proportional to the threat**: It will be for [Her Majesty’s Government] to show, also, that the local authorities of Canada, even supposing the necessity of the moment authorized them to enter the territories of the United States at all, did **nothing unreasonable or excessive; since the act, justified by the necessity of self-defense, must be limited by that necessity, and kept clearly within it.**

✓ **Both elements – necessity and proportionality – have been deemed essential to legitimate the preemptive use of force in customary international law.**

Effect of the United Nations Charter

However, with the founding of the United Nations, the right of individual states to use force was purportedly curbed. **The Charter of the UN states in its Preamble that the UN was established “to save succeeding generations from the scourge of war”**; and its substantive provisions obligate Member States of the UN to **“settle their international disputes by peaceful means” (Article 2(3)) and to “refrain**

in their international relations from the threat or use of force against the territorial integrity or political independence of any State, or in any manner inconsistent with the Purposes of the United Nations” (Article 2(4)). In place of the traditional right of states to use force, the Charter creates a system of collective security in which the Security Council is authorized to “determine the existence of any threat to the peace, breach of the peace, or act of aggression” and to “decide what measures shall be taken ... to maintain international peace and security” (Article 39). Although nominally outlawing most uses of force in international relations by individual States, the UN Charter does recognize a right of nations to use force for the purpose of self-defense. Article 51 of the Charter provides:

Nothing in the present Charter shall impair the inherent right of individual or collective self-defense if an armed attack occurs against a Member of the United Nations, until the Security Council has taken measures necessary to maintain international peace and security.

The exact scope of this right of self-defense, however, has been the subject of ongoing debate. Read literally, Article 51’s articulation of the right seems to preclude the preemptive use of force by individual states or groupings of states and to reserve such uses of force exclusively to the Security Council. Measures in self-defense, in this understanding, are legitimate only *after* an armed

attack has already occurred. [This reading of Article 51 finds support in the decision of the International Court of Justice in

Military and Paramilitary Activities in and Against Nicaragua (Nicaragua v. United States of America), 1986 I.C.J. Reports p. 14. The gravamen of the Court's ruling was that in customary international law as well as Article 51, the use of force in self-defense is justified only in response to an armed attack:

... [F]or one State to use force against another ... is regarded as lawful, by way of exception, only when the wrongful act provoking the response was an armed attack **In the view of the Court, under international law in force today – whether customary international law or that of the United Nations system – States do not have a right of “collective” armed response to acts which do not constitute an “armed attack”]**

Others contend that Article 51 should not be construed so narrowly and that “it would be a travesty of the purposes of the Charter to compel a defending state to allow its assailant to deliver the first, and perhaps fatal, blow” To read Article 51 literally, it is said, “is to protect the aggressor's right to the first strike.” Consequently, to avoid this result, some assert that Article **51 recognizes the “inherent**

right of individual or collective self-defence” as it developed in customary international law prior to adoption of the Charter and preserves it intact. The reference to that right not being impaired “if an armed attack occurs against a Member of the United Nations,” it is said, merely emphasizes one important situation where that right may be exercised but does not exclude or exhaust other possibilities.

In further support of this view, it is argued that the literal construction of Article 51 simply ignores the reality that the Cold War and other political considerations have often paralyzed the Security Council and that, in practice, states have continued to use force preemptively at times in the UN era and the international community has continued to evaluate the legitimacy of those uses under Article 51 by the traditional constraints of necessity and proportionality. The following examples illustrate several aspects of these contentions:

In 1962 President Kennedy, in response to photographic evidence that the Soviet Union was installing medium range missiles in Cuba capable of hitting the United State, imposed a naval “quarantine” on Cuba in order “to interdict ... the delivery of offensive weapons and associated material.” Although President Kennedy said that the purpose of the quarantine was “to defend the security of the United

States,” the U.S. did not rely on the legal concept of self-defense either as articulated in Article 51 or otherwise as a justification for its actions. Abram Chayes, the Legal Adviser to the State Department at that time, later explained the decision not to rely on that justification as follows:

- In retrospect ... I think the central difficulty with the Article 51 argument was that it seemed to trivialize the whole effort at legal justification. No doubt the phrase “armed attack” must be construed broadly enough to permit some anticipatory response. But it is a very different matter to expand it to include threatening deployments or demonstrations that do not have imminent attack as their purpose or probable outcome. To accept that reading is to make the occasion for forceful response essentially a question for unilateral national decision that would not only be formally unreviewable, but not subject to intelligent criticism, either Whenever a nation believed that interests, which in the heat and pressure of a crisis it is prepared to characterize as vital, were threatened, its use of force in response would become permissible In this sense, I believe that an Article 51 defense would have signaled that the United States did not take the legal issues involved very seriously, that in its view the situation was to be governed by national discretion, not international law.

- In 1967 Israel launched a preemptive attack on Egypt and other Arab states after President Nasser had moved his army across the Sinai toward Israel, forced the UN to withdraw its peacekeeping force from the Sinai border, and closed the port of Aqaba to Israeli shipping, and after Syria, Iraq, Jordan, and Saudi Arabia all began moving troops to the borders of Israel. In six days it routed Egypt and its Arab allies and had occupied the Sinai Peninsula, the West Bank, and the Gaza Strip. Israel claimed its attack was defensive in nature and necessary to forestall an Arab invasion. Both the Security Council and the General Assembly rejected proposals to condemn Israel for its “aggressive” actions.
- On June 7, 1981, Israel bombed and destroyed a nuclear reactor under construction in Iraq. Asserting that Iraq considered itself to be in a state of war with Israel, that it had participated in the three wars with Israel in 1948, 1967, and 1973, that it continued to deny that Israel has a right to exist, and that its nuclear program was for the purpose of developing weapons capable of destroying Israel, Israel claimed that “in removing this terrible nuclear threat to its existence, Israel was only exercising its legitimate right of self-defense within the meaning of this term in international law and as preserved also under the United Nations Charter.” Nonetheless, the Security Council unanimously “condemn[ed] the military attack by Israel in clear violation of the

Charter of the United Nations and the norms of international conduct” and urged the payment of “appropriate redress”.

Current Situation

- ✓ Thus, in both theory and practice the preemptive use of force appears to have a home in current international law. Its clearest legal foundation is in Chapter VII of the UN Charter.
- ✓ Under Article 39 the Security Council has the authority to determine the existence not only of breaches of the peace or acts of aggression that have already occurred but also of threats to the peace; and under Article 42 it has the authority to “take such action by air, sea, or land forces as may be necessary to maintain or restore international peace and security.”
- ✓ These authorities clearly seem to encompass the possibility of the preemptive use of force. Less clear is whether international law currently allows the preemptive use of force by a nation or group of nations without Security Council authorization. That would seem to be permissible only if Article 51 is read not literally but as preserving the use of force in self-defense as traditionally allowed in customary international law. As noted, the construction of Article 51 remains a matter of debate. But so construed, Article 51 would not preclude the preemptive use of force by the U.S. against Iraq or other sovereign nations. To be lawful, however, such uses of force would need to meet the

traditional requirements of necessity and proportionality. As the examples listed above illustrate, the requirement of necessity is most easily met when an armed attack is clearly imminent, as in the case of the Arab-Israeli War of 1967. But beyond such obvious situations, as Abram Chayes argued, the judgment of necessity becomes increasingly subjective; and there is at present no consensus either in theory or practice about whether the possession or development of weapons of mass destruction (WMD) by a rogue state justifies the preemptive use of force. Most analysts recognize that if overwhelmingly lethal weaponry is possessed by a nation willing to use that weaponry directly or through surrogates (such as terrorists), some kind of anticipatory self-defense may be a matter of national survival; and many – including the Bush Administration – contend that international law ought to allow, if it does not already do so, for the preemptive use of force in that situation. But many states and analysts are decidedly reluctant to legitimate the preemptive use of force against threats that are only potential and not actual on the grounds the justification can easily be abused. Moreover, it remains a fact that the international community judged Israel's destruction of Iraq's nuclear reactor site in 1981 to be an aggressive act rather than an act of self-defense. Iraq has become an occasion to revisit the issue. Iraq had not attacked the U.S., nor did it appear to pose an imminent threat of attack in traditional military terms. As a consequence, it seems doubtful that the use of force against Iraq could be deemed to meet the traditional legal tests justifying

preemptive attack. But Iraq may have possessed WMD, and it may have had ties to terrorist groups that seek to use such weapons against the U.S. If evidence is forthcoming on both of those issues, then the situation necessarily raises the question that the Bush Administration articulated in its national security strategy, *i.e.*, whether the traditional law of preemption ought to be recast in light of the realities of WMD, rogue states, and terrorism. Iraq likely will not resolve that question, but it is an occasion to crystallize the debate.

The protection of nationals abroad

- ✓ In the nineteenth century, it was clearly regarded as lawful to use force to protect nationals and property situated abroad and many incidents occurred to demonstrate the acceptance of this position.
- ✓ Since the adoption of the UN Charter, however, it has become rather more controversial since the ‘territorial integrity and political independence’ of the target state is infringed, while one interpretation of Article 51 would deny that ‘an armed attack’ could occur against individuals abroad within the meaning of that provision since it is the state itself that must be under attack, not specific persons outside the jurisdiction.

- ✓ The issue has been raised in recent years in several cases. In 1964, Belgium and the United States sent forces to the Congo to rescue hostages (including nationals of the states in question) from the hands of rebels, with the permission of the Congolese government, while in 1975 the US used force to rescue an American Cargo boat and its crew captured by Cambodia. The most famous incident, however, was the rescue by Israel of hostages held by Palestinian and other terrorists at Entebbe, following the hijack of an Air France airliner. The Security Council debate in that case was inconclusive. Some states supported Israel's view that it was acting lawfully in protecting its nationals abroad, where the local state concerned was aiding the hijackers, others adopted the approach that Israel had committed aggression against Uganda or used excessive force.
- ✓ The United States has in recent years justified armed action in other states on the grounds partly of the protection of American citizens abroad. It was one of the three grounds announced for the invasion of Grenada in 1984 and one of the four grounds put forward for the intervention in Panama in December 1989. However, in both cases the level of threat against the US citizens was such as to raise serious questions concerning the satisfaction of the requirement of proportionality.

Humanitarian Intervention

- ✓ Using military force to save lives is difficult, dangerous, rarely politically rewarding—and yet somehow here to stay. American presidents, UN Security Councils, and western publics will almost always want to do something when thousands or tens of thousands of innocent people are dying as a result of war. But dozens of civil wars are being waged around the world at any given time; demands being made on the U.S. armed forces already verge on being excessive; and conducting successful interventions is difficult. American policymakers must be judicious in deciding when and how to use force to save lives in conflicts that do not involve vital, strategic U.S. interests.
- ✓ Each such decision requires answering three crucial questions. When and where should we intervene? How should we do so? And who should do the intervening? By answering these questions carefully—and by trying to develop more global capacity for conducting peace and humanitarian operations—the international community can significantly reduce violence around the world in the years ahead.

1. When and Where to Intervene?

- ✓ Given the many conflicts in the world today, how can we possibly decide which ones to try to resolve by force? The answer is to focus on those where the scale of death and suffering is greatest, where intervention is unlikely to create great-power conflicts, and where a mission can be designed that promises many lives saved at low cost to intervening soldiers.

But aren't civil and ethnic conflicts spinning out of control to the point that the problem is intractable? The short answer is no. Yahya Sadowski argued convincingly in a 1998 Brookings book that contrary to what doomsayers have been prophesying for years, the prevalence and intensity of civil conflict are not increasing as a result of the end of the Cold War, globalization, or anything else. Of the many civil wars around the world, most are not especially violent. Their per capita death rates, for example, are not notably worse than murder rates in U.S. cities. That is not to say we should ignore these conflicts—only that the blunt, dangerous, and expensive instrument of forcible military intervention should not be applied in most instances. As Steve Solarz and I have argued, the United States and like-minded countries cannot be expected to try to make the rest of the world safer than U.S. society.

In the 1990s, ten conflicts were extremely lethal: those in Sudan, Rwanda, Angola, Somalia, Burundi, Liberia, Iraq, Sierra Leone, Bosnia, and Chechnya. These should have been the prime candidates for humanitarian intervention, as should any future conflicts of comparable severity (Kosovo and Haiti were not on this list, but the Clinton administration's wise decisions to intervene in those places reflected the presence of strategic stakes alongside humanitarian concerns). But it would not have been wise to intervene in all ten, which brings us to the second criterion for intervention—that a mission not

risk major-power war costing far more lives than could possibly be saved. Notably, intervening in Chechnya was and is simply out of the question, given Russia's size and nuclear weapons capability. (In North Korea, where not war but severe repression and misgovernment, joined with starvation, caused at least hundreds of thousands of deaths last decade, intervention was also impractical given the North's ability to retaliate and cause at least tens of thousands of casualties in South Korea. Likewise, a hypothetical intervention in Kashmir would be unthinkable without the permission of India and Pakistan. And similar considerations rule out any forceful military mission to protect Tibet from Chinese oppression.)

What about the other nine terrible wars of the 1990s? How could outside powers have used force to save lives without making the problems worse than they already were and costing many lives of intervening troops in the process? That is probably the hardest question of all.

2. How to Intervene?

- ✓ Simply deciding to intervene is not enough. Using force the wrong way can exacerbate some conflicts and get a lot of people, including U.S. troops, killed as well. For this reason, it is often said that the United States needs an exit strategy before choosing to intervene. That is generally good advice—as long as the exit strategy is sound. Sometimes, however, as in Kosovo, insisting on a

precise itinerary of intervention and a concrete political end-state for the region before becoming involved would be counterproductive. We do not, and probably cannot, know in advance how long outside forces might be needed; setting arbitrary deadlines risks creating unrealistic expectations at home and undesirable doubts abroad as to our commitment. Trying to determine now whether Kosovo will remain part of Yugoslavia, become independent, or be divided into two parts would do more to reignite the Serb-Albanian conflict than to resolve it.

- ✓ But at a minimum, the international community needs some sense of how it will apply military force before intervening. Should it simply do enough to feed starving people, should it create safe havens for individuals or groups at risk, should it impose a ceasefire line between warring parties—or might it even help one side to win a conflict?
- ✓ It all depends. Where tens of thousands are at risk from war—related famine, disease, or exposure, simply setting up protected humanitarian zones may make sense.
- ✓ Imposing ceasefire lines, or even permanently partitioning countries into two or more parts, can work well in some ethnic conflicts. We need not always create multiethnic, inclusive societies; sometimes saving lives is accomplishment enough. The international community's long-term goal in Bosnia remains recreating a multiethnic state, but in the short term, at least, allowing separate entities with separate armies is sound policy and represents a huge improvement over the state of

war that prevailed there five years ago. In Sudan, if the war-related famine again becomes severe, dividing the country into an Arab north and a Christian south may save the vast majority of threatened Sudanese lives at the lowest cost in dollars—and in the blood of intervening troops.

- ✓ Finally, we should even be willing to take sides when one party to a conflict is clearly the better choice for its own country and when taking sides is likely to end a conflict.

3. Who Should Intervene?

How much of the work in forcible humanitarian interventions should the United States be expected to do? It seems unreasonable—not to mention politically unsustainable—for U.S. troops to do most everything. Saving lives is not a uniquely American interest. And the United States, alone among the major western powers, already maintains high military vigilance in the Persian Gulf and the Korean peninsula.

Unfortunately, other countries in general have neither the forcible entry capabilities nor the sustainable logistics to intervene in distant lands to save lives. Australia has done most of the work in East Timor, and our European allies have provided the vast majority of troops in Bosnia and Kosovo, of late. But U.S. capabilities are generally needed, at least initially, in the face of armed opposition. And the

United States will need to contribute troops to postwar missions in places like the Balkans if it wishes to influence their conduct.

Although the United States need not create a specialized armed force for peace operations, it should modify its military force structure to lessen the strain of various types of limited missions around the world. Primary U.S. military attention must remain focused on those parts of the world where our economic interests are greatest, allies are at risk, and dangerous military competition could break out if local parties are not reassured or deterred. That means a continued emphasis on Europe, the Persian Gulf, and East Asia. But some military units—including special forces with particular language and political skills, military police, and support units that provide water, food, and medical care—should be beefed up for peace operations. Some of these special units, many now in the reserve force structure because they do not require constant training and drilling to do their jobs in war, are being overused. Placing more of them in the active-duty force structure would allow them to be deployed without excessively disrupting the lives of reservists, many of whom do not expect such duty short of a national crisis. Some 10,000 to 20,000 specialized troops should be added—at a cost of about \$1 billion a year, less than half of 1 percent of the defense budget. That is not too high a price to pay.

Other countries have much more work to do. The European allies, Canada, and even Japan should improve their ability to move troops to distant combat zones. The United States should overcome its ambivalence about its allies strengthening their military capabilities and enthusiastically endorse most any steps they take toward greater military burden sharing.

Among the major western European nations, the model for improving peace operations and forcible intervention capabilities is clear. In a word, it is Britain. Its military is smaller than that of France or Germany but much more useful beyond its own borders. It can deploy perhaps 50,000 combat troops, with air support, well beyond its territory within three to four months and sustain them there for months. Britain is also planning to acquire more sealift and airlift to move its forces fairly rapidly. Smaller European countries cannot use Britain as an exact model, of course, but they can scale their efforts to some extent proportionately or band together in subgroups, with each country developing certain specialties. Because the European Union cannot be expected in the near term to act as a single entity in matters of war and peace, the most realistic alternative is for several countries or subgroups of countries each to have the capacity for meaningful military action abroad on their own or as coalitions of the willing.

What of budget constraints? Most European countries do not need to spend more—they need to spend differently. Large force structures are no longer needed, as Britain has already recognized and as Germany appears to be concluding as well. By cutting troops and buying lift and mobile logistics, NATO European countries can do far more than they do now with the \$170 billion a year they spend on defense.

Were Germany and Japan to follow the above prescriptions, their neighbors might be highly agitated, worrying about their capacity for autonomous power projection. The simplest way to defuse—or at least contain—such concerns is to begin with modest military ambitions for those two cases. Deploying troops only under multilateral, and preferably UN, auspices would further reassure nervous neighbors.

What about non-Western countries? Expensive hardware such as airlift capabilities, helicopters, and fighter aircraft, especially in large numbers, will generally be beyond their means. It is more realistic to ask these countries to develop well-trained soldiers, proficient in basic combat and peacekeeping skills, and equipped with serviceable small arms, body armor, vehicles for transport, and logistics and communications support for sustained operations abroad. Even if such countries cannot be expected to

lead forcible interventions, they can provide valuable combat forces that enable peacekeeping missions to uphold ceasefires and peace accords under challenge. As the world witnessed in Angola in the early 1990s, some of the worst and most deadly conflicts erupt in countries where peace accords are reached, but later disintegrate. The breakdown of the Sierra Leone peace accord in 2000 that left many African troops held hostage is another reminder of the need for better-prepared peacekeeping troops, particularly from regions such as Africa, where conflicts are most common.

The United States and other western countries can do a great deal to help in this regard by providing modest sums—perhaps a couple hundred million dollars a year in all—for improved training, equipment, and other basic military needs. Programs like the African Crisis Response Initiative (ACRI), created by the Clinton administration, should not only be continued, but expanded dramatically. At present the ACRI funds only occasional training rotations for a few thousand regional troops, to the tune of about \$20 million annually.

Again, the focus should be on improving individual countries' military capacities, so that they can deploy as ad hoc coalitions, rather than depending on unanimous participation from all members of regional security groups to carry out missions. Regional institutions are useful for negotiating peace

accords and politically legitimating interventions, but not for owning or maintaining actual military forces-at least not yet.

This agenda is not particularly demanding for the United States. It involves small changes in the U.S. armed forces, limited aid to certain poorer countries, and diplomatic efforts to promote the plan. But the actions outlined here can make a big difference in preparing the world to handle peace operations in war-ravaged lands like Angola and Congo-lands whose forsaken people are now being often forgotten.

CHAPTER 8: International Dispute Resolution

✓ International disputes are solved in two general methods: in the **first category lie the International Court of Justice and Other International Tribunals** and in the **second category are Arbitration, Negotiation, and Mediation-diplomatic means of dispute resolution mechanisms.**

1. Negotiation, Arbitration, and Mediation

*** Arbitration**

✓ Arbitration is a **dispute resolution process where the opposing parties select or appoint an individual called an Arbitrator.** Upon appointment, the Arbitrator will arrange the process to hear and consider

the evidence, review arguments and afterwards will publish an award in which the items of dispute are decided.

- ✓ In some cases the Arbitrator can conduct the arbitration on documents evidence only. When published the Arbitrator's decisions are final and binding on the parties. It is rare for an arbitration to be appealed to the courts. Arbitration may comprise a sole Arbitrator, or may be a panel of Arbitrators.
- ✓ Costs of the arbitration are disposed of in the Arbitrator's award, unless the parties have some agreement to the contrary.

✱ Mediation

- ✓ A dispute resolution process in which the parties freely choose to participate and any agreements reached to settle disputes is done solely by the parties, without interference. The Mediator is selected by the parties and once selected; the Mediator will arrange the mediation process. The Mediator makes no decisions; instead he/she acts as a facilitator only to assist the parties to understand the dispute, provide structured discussion and to help the parties reach a dispute settlement agreement.

- ✓ If the parties can't reach a settlement agreement, they are free to pursue other options. The parties generally decide in advance how they will contribute to the cost of the mediation. Mediation is a very important form of ADR, particularly if the parties wish to preserve their relationship.

* Conciliation

- ✓ Conciliation is a less frequently used form of ADR, and can be described as similar to mediation. The Conciliator's role is to guide the parties to a settlement.
- ✓ The parties must decide in advance whether they will be bound by the Conciliator's recommendations for settlement.
- ✓ The parties generally share equally in the cost of the conciliation.

* Negotiation

- ✓ Negotiation is a less structured form of ADR. The facilitator's role is to keep the parties talking and bargaining. The parties may be individuals or teams. The facilitator keeps record of party positions, and points of agreement they reach as discussions proceed.
- ✓ The process can be lengthy, as in labor or sports negotiation. The facilitator will prepare a memorandum of agreement containing all of the points agreed.

- ✓ The parties can formalize the memorandum of agreement by inserting a condition that will be binding. The parties generally share equally in the cost. On any matters unresolved, the parties are free to pursue other options.

2. The International Court of Justice/ICJ/

- ✓ The International Court of Justice acts as a world court.
- ✓ The Court has a dual jurisdiction: it decides, in accordance with international law, disputes of a legal nature that are submitted to it by States (jurisdiction in contentious cases); in which the court produces binding rulings between states that agree, or have previously agreed, to submit to the ruling of the court; and it gives advisory opinions on legal questions at the request of the organs of the United Nations or specialized agencies authorized to make such a request (advisory jurisdiction). Advisory opinions do not have to concern particular controversies between states, though they often do.

a. Contentious Jurisdiction

- ✓ In the exercise of its jurisdiction in contentious cases, the International Court of Justice has to decide, in accordance with international law, disputes of a legal nature that are submitted to it by States.

- ✓ An **international legal dispute** can be defined as a **disagreement on a question of law or fact, a conflict, a clash of legal views or of interests**.
- ✓ Only States may **apply to and appear before the International Court** of Justice. **International organizations, other collectivities and private persons are not entitled to institute proceedings before the Court.**
- ✓ Article 35 of the Statute defines the conditions of access for States to the Court. While paragraph 1 of that Article opens it to the State parties to the Statute, paragraph 2 is intended to regulate access to the Court by States which are not parties to the Statute. The conditions of access of such States are, subject to the special provisions contained in treaties in force at the date of the entry into force of the Statute, to be determined by the Security Council, with the proviso that in no case shall such conditions place the parties in a position of inequality before the Court.
- ✓ The Court can only deal with a dispute when the States concerned have recognized its jurisdiction. No State can therefore be a party to proceedings before the Court unless it has in some manner or other consented thereto.
- ✓ Article 35, paragraph 1, of the Statute provides that the Court shall be open to the States parties to the Statute, and Article 93, paragraph 1, of the Charter of the United Nations provides that all Members of the United Nations are *ipso facto* parties to the Statute.

✿ Basis of the Court's Contentious Jurisdiction

✓ The jurisdiction of the Court in contentious proceedings is based on the consent of the States to which it is open. The form in which this consent is expressed determines the manner in which a case may be brought before the Court.

(a) *Special agreement:* Article 36, paragraph 1, of the Statute provides that the jurisdiction of the Court comprises all cases which the parties refer to it. Such cases normally come before the Court by notification to the Registry of an agreement known as a special agreement and concluded by the parties especially for this purpose. The subject of the dispute and the parties must be indicated.

(b) *Cases provided for in treaties and conventions:* Article 36, paragraph 1, of the Statute provides also that the jurisdiction of the Court comprises all matters specially provided for in treaties and conventions in force. In such cases a matter is normally brought before the Court by means of a written application instituting proceedings; this is a unilateral document which must indicate the subject of the dispute and the parties (Statute, Art. 40, Para. 1) and, as far as possible, specify the provision on which the applicant founds the jurisdiction of the Court (Rules, Art. 38). Article 37 of the Statute of the International Court of Justice stipulates that whenever a treaty or convention in force provides for reference of a matter to a tribunal to have been instituted by the League of Nations, or to

the Permanent Court of International Justice, the matter shall, as between the parties to the Statute, be referred to the International Court of Justice.

(c) *Compulsory jurisdiction in legal disputes:* The Statute provides that a State may recognize as compulsory, in relation to any other State accepting the same obligation, the jurisdiction of the Court in legal disputes. These cases are brought before the Court by means of written applications. The conditions on which such compulsory jurisdiction may be recognized are stated in paragraphs 2-5 of Article 36 of the Statute, which read as follow: "*2. The States parties to the present Statute may at any time declare that they recognize as compulsory **ipso facto** and without special agreement, in relation to any other State accepting the same obligation, the jurisdiction of the Court in all legal disputes concerning:*

(a) the interpretation of a treaty;

(b) any question of international law;

(c) the existence of any fact which, if established, would constitute a breach of an international obligation;

(d) the nature or extent of the reparation to be made for the breach of an international obligation.

3. *The declarations referred to above may be made unconditionally or on condition of reciprocity on the part of several or certain States, or for a certain time.*

4. *Such declarations shall be deposited with the Secretary-General of the United Nations, who shall transmit copies thereof to the parties to the Statute and to the Registrar of the Court.*

5. *Declarations made under Article 36 of the Statute of the Permanent Court of International Justice and which are still in force shall be deemed, as between the parties to the present Statute, to be acceptances of the compulsory jurisdiction of the International Court of Justice for the period which they still have to run and in accordance with their terms."*

(d) *Forum prorogatum*: If a State has not recognized the jurisdiction of the Court at the time when an application instituting proceedings is filed against it, that State has the possibility of accepting such jurisdiction subsequently to enable the Court to entertain the case: the Court thus has jurisdiction as of the date of acceptance in virtue of the rule of forum prorogatum.

(e) *The Court itself decides any questions as to its jurisdiction*: Article 36, paragraph 6, of the Statute provides that in the event of a dispute as to whether the Court has jurisdiction, the matter shall be settled by the decision of the Court. Article 79 of the Rules lays down the conditions which govern the filing of preliminary objections.

(f) Interpretation of a judgment: Article 60 of the Statute provides that in the event of dispute as to the meaning or scope of a judgment, the Court shall construe it upon the request of any party. The request for interpretation may be made either by means of a special agreement between the parties or of an application by one or more of the parties (Rules, Art. 98).

(g) Revision of a judgment: An application for revision of a judgment may be made only when it is based upon the discovery of some fact of such a nature as to be a decisive factor, which fact was, when the judgment was given, unknown to the Court and also to the party claiming revision, always provided that such party's ignorance was not due to negligence (Statute, Art. 61, Para. 1). A request for revision is made by means of an application (Rules, Art. 99).

b. Advisory Jurisdiction

- ✓ Since States alone have capacity to appear before the Court, public (governmental) international organizations cannot as such be parties to any case before it. A special procedure, the advisory procedure, is, however, available to such organizations and to them alone.
- ✓ Though based on contentious proceedings, the procedure in advisory proceedings has distinctive features resulting from the special nature and purpose of the advisory function.

- ✓ Advisory proceedings begin with the filing of a **written request for an advisory opinion** addressed to the Registrar by the United-Nations Secretary-General or the director or secretary-general of the entity requesting the opinion. In urgent cases the Court may do whatever is necessary to speed up the proceedings.
- ✓ In order that it may be fully informed on the question submitted to it, the Court is empowered to hold written and oral proceedings.
- ✓ A few days after the filing of the request, the Court draws up a list of those States and international organizations likely to be able to furnish information on the question before the Court. In general, the States listed are the member States of the organization requesting the opinion, while sometimes the other states to which the Court is open in contentious proceedings are also included. As a rule, organizations and States authorized to participate in the proceedings may submit written statements, followed, if the Court considers it necessary, by written comments on these statements. These written statements are generally made available to the public at the beginning of the oral proceedings, if the Court considers that such proceedings should take place.
- ✓ Contrary to judgments and except in rare cases where it is stipulated beforehand that they shall have binding effect, the Court's advisory opinions have no binding effect. The requesting organ, agency or organization remains free to decide, by any means open to it, what effect to give to these opinions.

- ✓ They are often an instrument of preventive diplomacy and have peace-keeping virtues. Advisory opinions also, in their way, contribute to the elucidation and development of international law and thereby to the strengthening of peaceful relations between States.

Organs and Agencies of the United Nations Authorized to Request Advisory Opinions

- ✓ In accordance with the Article 96.1 of the Charter of the United Nations "**the General Assembly or the Security Council** may request the International Court of Justice to give an advisory opinion on any legal question". Article 96.2 of the Charter provides that "other organs of the United Nations and specialized agencies, which may at any time be so authorized by the General Assembly, may also request advisory opinions of the Court on legal questions arising within the scope of their activities".
- ✓ Hence, the following UN Organs are entitled to request for advisory opinion from the International Court of Justice. These are: the General Assembly, Security Council Economic and Social Council, Trusteeship Council, Interim Committee of the General Assembly. Also the United Nations, Specialized Agencies: International Labor Organization (ILO), Food and Agriculture Organization of the United Nations (FAO) United Nations Educational, Scientific and Cultural Organization (UNESCO), World Health Organization (WHO), International Bank for Reconstruction and Development (IBRD), International Finance Corporation (IFC) , International Development

Association (IDA), International Monetary Fund (IMF), International Civil Aviation Organization (ICAO), International Telecommunication Union (ITU) , International Fund for Agricultural Development (IFAD), World Meteorological Organization (WMO), International Maritime Organization (IMO), World Intellectual Property Organization (WIPO), United Nations Industrial Development Organization (UNIDO) are the beneficiaries of advisory opinion of the International Court.

The ICJ and the Security Council

- ✓ The relationship between the ICJ and the Security Council, and the separation of their powers, was considered by the Court in 1992, in the Pan Am case. The Court had to consider an application from Libya for the order of provisional measures to protect its rights, which, it alleged, were being infringed by the threat of economic sanctions by the UK and USA. The problem was that these sanctions had been authorized by the Security Council, which resulted with a potential conflict between the Chapter VII functions of the Security Council and the judicial function of the Court. The Court decided, by eleven votes to five, that it could not order the requested provisional measures because the rights claimed by Libya, even if legitimate under the Montreal Convention, could no longer be upheld since the action was justified by the Security Council. In accordance with

Article 103 of the UN Charter, obligations under the Charter took precedence over other treaty obligations.

- ✓ There was a marked reluctance on the part of a majority of the Court to become involved in a dispute in such a way as to bring it potentially into conflict with the Council. The Court stated in the Nicaragua case (Jurisdiction) that there is no necessary inconsistency between action by the Security Council and adjudication by the ICJ. However, where there is room for conflict, the balance appears to be in favor of the Security Council. Should either party fail "to perform the obligations incumbent upon it under a judgment rendered by the Court", the Security Council may be called upon to "make recommendations or decide upon measures" if the Security Council deems such actions necessary. In practice, the Court's powers have been limited by the unwillingness of the losing party to abide by the Court's ruling, and by the Security Council's unwillingness to enforce consequences. However, in theory, "so far as the parties to the case are concerned, a judgment of the Court is binding, final and without appeal," and "by signing the Charter, a State Member of the United Nations undertakes to comply with any decision of the International Court of Justice in a case to which it is a party".

Other International Tribunals

- ✓ In addition to the ICJ the international Community also establishes permanent and/ad hoc tribunals for the achievement of its objective.

International War Crimes Tribunals

- ✓ International war crimes tribunals are courts of law established to try individuals accused of war crimes and crimes against humanity. Despite the often terrible nature of the crimes that individuals commit during intractable conflicts, including genocide, torture, and rape, it has become common practice to offer the accused an opportunity to explain his or her actions in front of the victims and their families, as well as the media. Tribunals have almost entirely replaced retributive justice's summary executions. Based on generally agreed-upon international standards of acceptable human behavior, they have introduced a new culture of liberal legalism for dealing with war crimes.
- ✓ Following a conflict, crimes that have exceeded the normal parameters of war behavior (*jus in bello*) must be dealt with before a society can begin the peace building process of reconciliation. War crimes tribunals do not offer the accused a chance for forgiveness as truth and reconciliation commissions do. Tribunals do, however, offer victims and their families the opportunity to confront those responsible for what happened to them, and hopefully to put the horrors of war behind them. A tribunal can be a forum for honoring the memory of those lost, as well as punishing those responsible.

- ✓ War crimes tribunals offer a rare chance for the world's leaders and citizens to scrutinize both the deplorable decisions made by particular leaders, and the atrocities committed by the soldiers and agents of those leaders. Without such a forum, there would be no method for assuring that the masterminds and perpetrators of genocide and other war crimes are justly punished.
- ✓ Tribunals also **give victims and their families an opportunity to regain a sense of power that may have been lost resulting from a war crime.** It is empowering for victims to stand up in a court of law and identify those who wronged them.
- ✓ A war crimes tribunal can also force forgotten or hidden atrocities to be retold by survivors. In this way war criminals living free of judgment are finally forced to accept responsibility for their actions and be judged for what they have done.
- ✓ For a country attempting to make a transition from a repressive regime to a democracy, war crimes tribunals offer citizens and leaders the opportunity to put their faith in an equitable rule of law. Countries that truly wish to become modern democracies must accept the rule of democratic law and apply it to even their most powerful criminals. While this process takes an enormous effort of national will, nations that successfully conduct tribunals within the bounds of such laws prove they can function without reverting to the undesirable methods of repression and violence. Thus war

crimes tribunals have the potential to **help emerging democracies discover the benefits of a strong legal system while reconciling past atrocities.**

- ✓ Finally, if all members of a society can agree upon what is unacceptable by trying its war criminals, then it is easier for the society to agree on what is acceptable. A successful war crimes tribunal allows the past to be laid to rest and a peaceful future forged from its results.

Criticisms on war crime tribunals

- ★ War crimes tribunals offer no deterrent to potential criminals whatsoever. People with strong convictions against a certain religious or ethnic group will likely not feel any less hatred for that group just because a possible tribunal looms in the future. Both Hitler and Pol Pot believed they would be revered by future generations for the extreme measures they took to change the makeup of their societies. These leaders were inspired by their visions of the future and it is unlikely the prospect of a war crimes tribunal would have swayed either dictator.
- ★ Men like Hitler and Pol Pot, the leaders of violent movements, are never judged by tribunals for what they do. A war crimes tribunal that tries only middle ranking officers, soldiers, and politicians is not as effective as one that tries the mastermind behind the crimes.
- ★ They do not alleviate the underlying causes of the conflict. In fact, tribunals can escalate conflict, especially in a multi-ethnic society. In cases of genocide, those accused of war crimes are usually all

from one ethnic group. To this group, a war crimes tribunal can appear to be a trial against their ethnicity, not just an individual from their group. This is especially true when the judicial system fails to fairly represent the whole society.

- ★ They are ineffective in transforming a fractured society into one of stability and peace. War crimes tribunals necessarily demonize individuals and sometimes whole groups, further separating parties, instead of building peace.
- ★ They offer only the victors justice. What was most obviously missing following World War II was not Hitler at Nuremberg, but a trial for Americans, French, British, and Russian individuals who committed acts that would have been considered war crimes had the Allies lost the war. The fire bombing of Dresden and the use of atomic weapons on Hiroshima and Nagasaki are clear examples of acts for which Allied leaders would have been tried had the war ended in favor of the Germans and Japanese. While it is easy and satisfying to put the enemy in prison for what he or she has done, it does not seem entirely fair if all those who participate in a war are not held to the same standards. In fact, one of the reasons that the United States has so far failed to support an international war crimes tribunal, the International Criminal Court, is fear that U.S. officers would be found guilty by the court. The United States also fears that this Court could be used for political revenge against the world's only superpower.

The Creation of an International Criminal Court

- ✓ The International Criminal Court (I.C.C.) was officially established on July 1, 2002, and is located in The Hague, The Netherlands.
- ✓ However, all of the world's nations have not ratified the Rome Statute of the I.C.C., the document outlining the purposes, capabilities, and restrictions of the I.C.C. In fact, the United States, Russia, and Japan are among the major industrialized states that have yet to ratify this document. However, a sufficient number of nations have ratified the Rome Statute, and in accordance with its rules, the court now officially exists.
- ✓ A key component of the I.C.C. is that only war crimes committed after the I.C.C.'s establishment can fall under its jurisdiction. Another aspect is that only those nations that ratify the document will fall under its jurisdiction. In general, the I.C.C. will have jurisdiction over crimes brought to its attention by outside parties or by its own investigators. The I.C.C. will not replace national tribunals, but will complement them by offering an arena for hearing claims that may be too complicated or extensive for a national court.

International Criminal Tribunal for the former Yugoslavia

- ✓ The International Tribunal for the Prosecution of Persons Responsible for Serious Violations of International Humanitarian Law Committed in the Territory of the Former Yugoslavia since 1991,

more commonly referred to as the International Criminal Tribunal for the former Yugoslavia or ICTY, is a body of the United Nations (UN) established to prosecute serious crimes committed during the wars in the former Yugoslavia, and to try their alleged perpetrators.

- ✓ The tribunal is an ad-hoc court and is located in The Hague in the Netherlands.
- ✓ It was originally proposed by German Foreign Minister Klaus Kinkel and established by Resolution 827 of the United Nations Security Council, which was passed on May 25, 1993.
- ✓ It has jurisdiction over four clusters of crime committed on the territory of the former Yugoslavia since 1991: **grave breaches of the 1949 Geneva Conventions, violations of the laws or customs of war, genocide, and crime against humanity.**
- ✓ It can try only individuals, not organizations or governments. The maximum sentence it can impose is life imprisonment. Various countries have signed agreements with the UN to carry out custodial sentences. The last indictment was issued March 15, 2004. The Tribunal aims to complete all trials by the end of 2009 and all appeals by 2010.

CHAPTER 9: National Courts and International Law Issues

- ✓ The international community is the sum total of the Sovereign states comprising the World. Traditionally the legal system of the states is more tangible than international law.

✓ While a state member of the international community and narrowly member of the United Nations exists as a sovereign state, it has its domestic laws applicable in the domestic affairs of the state. On the other hand, there might arise international laws that have to be applicable against the same scenario. While the two laws are applicable with out one affecting the application of the other, we may not notice any problem. The problem could be when we encounter a conflict on their application to the same subject matter, perhaps. There are two main views on this matter: the Monist and Dualist views.

✱ **Monism:** it characterizes **international and municipal law as a single legal system with municipal law subordinate to international law**. Hence, all treaties and the orders of international organizations are effective without any action being required to convert international into municipal law. This has an interesting consequence because treaties that limit or extend the powers of the particular government are automatically considered a part of their constitutional law. In states adopting this theory, **the local courts automatically accept jurisdiction to adjudicate on lawsuits relying on international law principles**.

✱ **Dualism:** it regards international and municipal law as separate systems so that the **municipal courts can only apply international law either when it has been incorporated into municipal law or when the courts incorporate international law on their own motion**. In the United

Kingdom, for example, a treaty is not effective until it has been incorporated at which time it becomes enforceable in the courts by any private citizen, where appropriate, even against the UK Government. Otherwise the courts have discretion to apply international law where it does not conflict with statute or the common law. The constitutional principle of parliamentary supremacy permits the legislature to enact any law inconsistent with any international treaty obligations even though the government is a signatory to those treaties.

1. Customs and Treaties as Part of the Law of Ethiopia

- ✓ Under the current arrangement of the legal system of The Federal Democratic Republic of Ethiopia, the Constitution makes itself the Supreme law of the land under Article 9. Article 9(1) provides “any law, customary practice or decision of an organ of state or a public official which contravenes this constitution shall be of no effect.” Sub Article 4 of the constitution provides on the other hand “all international agreements ratified by Ethiopia are an integral part of the law of the land.” The problem that could be raised here is customary international law excluded in from being the integral part of the law of Ethiopia. This is because the constitution says “...international agreements ratified by Ethiopia...” Hence any subordinate law or custom (‘does it include international custom?’) contrary to the constitution is void.

- ✓ On the other hand Article 13 (2) of the constitution provides that the fundamental rights and freedoms specified in this chapter shall be interpreted in a manner conforming to the principles of the UDHR, the International Covenants on Human rights and International instruments adopted by Ethiopia. However arguable it is, the Ethiopia constitution gives a first hand place for human rights instruments (ratified) for purposes of interpretation. Obviously human rights instruments are sources of international law as the Article 38 of the ICJ Statute provides. But not all instruments are related human rights. Therefore the question arises as to the status of International treaties not related to human rights but ratified by Ethiopia. What about customary rules of international law, *jus cojens*?

2. Bases of State Jurisdiction

- ✓ Public international law provides a framework within which nations and states can come into being and relate to each other. This is addressed by jurisdiction issues.

*** Jurisdiction as a political issue**

- ✓ When a country is recognized as *de jure*, this is an acknowledgment by the other *de jure* nations that the new country has sovereignty and the right to exist. This is a political system that moves slowly, gathering consensus wherever possible and the extent to which any state will co-operate or participate is always at the discretion of each sovereign state.

- ✓ Necessarily, if any state does agree to participate in any of the activities of the supranational bodies and to accept decisions that might be made in the ordinary course of their business, that state is giving up a little of its sovereign authority and thereby allocating a little power to these bodies. Insofar as these bodies or nominated individuals may resolve disputes in a judicial or quasi-judicial fashion, or promote treaty obligations in the nature of laws, the power ceded to these bodies cumulatively represents each body's own jurisdiction. But no matter how powerful each body may appear to become, the extent to which any of the judgments may be enforced, or proposed treaties and conventions may become or remain effective within the territorial boundaries of each nation is a political matter under the sovereign control of the relevant representative government(s) which, in a democratic context, will have electorates to satisfy.

*** International versus municipal jurisdiction**

- ✓ The fact that international organizations, courts and tribunals have been created raises the difficult question of how to co-ordinate their activities with those of national courts.
- ✓ If the two sets of bodies do not have concurrent jurisdiction but, as in the case of the International Criminal Court (ICC), the relationship is expressly based on the principle of complementarity, i.e. the international court is subsidiary or complementary to national courts, the difficulty is avoided. But if the jurisdiction claimed is concurrent, or as in the case of International Criminal Tribunal for

the former Yugoslavia (ICTY), the international tribunal is to prevail over national courts, the problems are more difficult to resolve.

- ✓ The concept of **universal jurisdiction** is fundamental to the operation of global organizations such as the United Nations and the International Court of Justice (ICJ), which jointly assert the benefit of maintaining legal entities with jurisdiction over a wide range of matters of significance to states which is an assertion of extraterritorial jurisdiction that will fail to gain implementation in any other state under the standard provisions of public policy.
- ✓ Under Article 34 Statute of the ICJ only states may be parties in cases before the Court and, under Article 36, the jurisdiction comprises all cases which the parties refer to it and all matters specially provided for in the Charter of the United Nations or in treaties and conventions in force. But, to invoke the jurisdiction in any given case, all the parties have to accept the prospective judgment as binding.
- ✓ Despite the safeguards built into the constitutions of most of these organizations, courts and tribunals, the concept of universal jurisdiction is controversial among those states which prefer unilateral to multilateral solutions through the use of executive or military authority.
- ✓ Within other international contexts, there are intergovernmental organizations such as the World Trade Organization (WTO) that have socially and economically significant dispute resolution

functions but, again, even though their jurisdiction may be invoked to hear the cases, the power to enforce their decisions is at the will of the states affected, save that the WTO is permitted to allow retaliatory action by successful states against those states found to be in breach of international trade law.

- ✓ At a regional level, groups of states can create political and legal bodies with sometimes complicated patchworks of overlapping provisions detailing the jurisdictional relationships between the member states and providing for some degree of harmonization between their national legislative and judicial functions. Each such group may form transnational institutions with declared legislative or judicial powers.
- ✓ This jurisdiction is entrenched and its authority could only be denied by a Member State if that Member State asserts its sovereignty and withdraws from the Union.

3. Extradition

- ✓ Is the official process by which one nation or state requests and obtains from another nation or state the surrender of a suspected or convicted criminal. Between nation states, extradition is regulated by treaties.

*** Extradition Treaties/Agreements**

- ✓ The consensus in international law is that a state does not have any obligation to surrender an alleged criminal to a foreign state, as one principle of sovereignty is that every state has legal authority over the people within its borders. Such absence of international obligation and desire of the right to demand such criminals of other countries has caused a web of extradition treaties or agreements to evolve; most countries in the world have signed bilateral extradition treaties with most other countries.
- ✓ There are two types of extradition treaties: **list** and **dual criminality treaties**. The most common and traditional is the **list treaty, which contains a list of crimes for which a suspect will be extradited. Dual criminality treaties**, used since the 1980s, generally **allow for extradition of a criminal suspect if the punishment is more than one year imprisonment in both countries**. Occasionally the amount of the time of the sentence agreed upon between the two countries is varied. Under both types of treaties, if the conduct is not a crime in both countries then it will not be an extraditable offense.
- ✓ Generally, an extradition treaty requires that a country seeking extradition be able to show that:
 - ★ The relevant crime is sufficiently serious.
 - ★ There exists a prima facie case against the individual sought.
 - ★ The event in question qualifies as a crime in both countries.

- ★ The extradited person can reasonably expect a fair trial in the recipient country.
- ★ The likely penalty will be proportionate to the crime.

*** Restrictions**

- ✓ Most countries require themselves to deny extradition requests if, in the government's opinion, the suspect is sought for a political crime.
- ✓ Many countries, such as Mexico, Canada and most European nations, will not allow extradition if the death penalty may be imposed on the suspect unless they are assured that the death sentence will not subsequently be passed or carried out
- ✓ These restrictions are normally clearly spelled out in the extradition treaties that a government has agreed upon. They are, however, controversial in the United States, where the death penalty is practiced in some U.S. states, as it is seen by many as an attempt by foreign nations to interfere with the U.S. criminal justice system. In contrast, pressures by the U.S. government on these countries to change their laws, or even sometimes to ignore their laws, is perceived by many in those nations as an attempt by the United States to interfere in their sovereign right to manage justice within their own borders.

✓ Countries with a rule of law typically make extradition subject to review by that country's courts. These courts may impose certain restrictions on extradition, or prevent it altogether, if for instance they deem the accusations to be based on dubious evidence, or evidence obtained from torture, or if they believe that the defendant will not be granted a fair trial on arrival, or will be subject to cruel, inhumane or degrading treatment if extradited.

✓ Some countries, such as France, Russian Federation, Germany, Austria, China and Japan, have laws that forbid extraditing their respective citizens. Others, such as Iraq, prohibit extradition of their own citizens in their constitutions. Some others stipulate such prohibition on extradition agreements rather than their laws. Such restrictions are occasionally controversial in other countries when, for example, a French citizen commits a crime abroad and then returns to their home country, perceived as to avoid prosecution. These countries, however, make their criminal laws applicable to citizens abroad, and they try citizens suspected of crimes committed abroad under their own laws. Such suspects are typically prosecuted as if the crime had occurred within the country's borders.

*** Controversies: International strains**

✓ The refusal of a country to extradite suspects or criminals to another may lead to international relations being strained. Often, the country to which extradition is refused will accuse the other country of refusing extradition for political reasons (regardless of whether this is justified).

✓ The matters are often complex when the country from which suspects are to be extradited is a democratic country with a rule of law. Typically, in such countries, the final decision of extradition lies with the national executive (prime minister, president or equivalent). However, such countries typically allow extradition defendants recourse to the law, with multiple appeals. These may significantly slow down the procedures. On the one hand, this may lead to unwarranted international difficulties, as the public, politicians and journalists from the requesting country will ask their executive to put pressure on the executive of the country from which extradition is to take place, while that executive may not in fact have the authority to deport the suspect or criminal on their own.